



CHAPTER xiii.

An Act to confer further powers upon the mayor aldermen and burgesses of the borough of Swindon in regard to lands and to make further and better provision in reference to the improvement health local government and finances of the borough and for other purposes.

[18th July 1947.]

WHEREAS the borough of Swindon in the county of Wilts is a municipal borough under the government and local management of the mayor aldermen and burgesses of the borough (in this Act called "the Corporation"):

And whereas by the Swindon Corporation (Wilts and Berks Canal Abandonment) Act 1914 a reservoir (then known as the Coate reservoir) and the land surrounding the same (all of which are in this preamble called "Coate Water") were transferred to the Corporation subject to the provisions of that Act and the Corporation were authorised to use Coate Water as a public park: ^{4 & 5 Geo. 5. c. cviii.}

And whereas the Corporation are the owners of the mansion and park land formerly forming part of the Lydiard Park estate and certain other lands in the neighbourhood thereof (all of which lands are in this preamble referred to as "Lydiard Park"):

And whereas Lydiard Park has been designated a public park:

And whereas the Corporation are the owners of the mansion and park land known as the Lawn and certain other lands in the neighbourhood thereof (all of which lands are in this preamble referred to as "the Lawn"):

And whereas it is expedient to confer further powers upon the Corporation in regard to Coate Water Lydiard Park and the Lawn and to enact further provisions in regard thereto:

And whereas it is expedient to make further and better provision with regard to the improvement health and local government of the borough and that the powers of the Corporation in regard thereto should be enlarged as is provided in this Act:

And whereas it is expedient to make further provision in regard to the finances of the Corporation:

And whereas it is expedient to empower the Corporation by agreement with the Institute of Municipal Treasurers and Accountants (Incorporated) to admit the employees of that institute to participate in the benefits of the superannuation fund of the Corporation:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

23 & 24 Geo. 5.
c. 51. And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I.

PRELIMINARY.

Short title. 1. This Act may be cited as the Swindon Corporation Act 1947.

Division of Act
into Parts. 2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Lands.

Part III.—Streets buildings and sewers.

Part IV.—Infectious diseases and sanitary matters.

Part V.—Finance and rating.

Part VI.—Miscellaneous.

Part VII.—General.

3. The Lands Clauses Acts except sections 127 to 132 of the Lands Clauses Consolidation Act 1845 and except the provisions with respect to the purchase and taking of lands otherwise than by agreement (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act.

PART I.
—cont.

Incorporation
of Lands
Clauses Acts.
8 & 9 Vict.
c. 18.

4.—(1) In this Act the several words and expressions to which meanings are assigned by sections 90 and 343 of the Public Health Act 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

Interpretation.
26 Geo. 5. &
1 Edw. 8.
c. 49.

(2) In this Act unless the subject or context otherwise requires the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated with this Act shall have the same respective meanings And—

“ The borough ” means the borough of Swindon;

“ The Corporation ” means the mayor aldermen and burgesses of the borough of Swindon;

“ The council ” means the council of the borough;

“ The town clerk ” “ the treasurer ” “ the surveyor ”
“ the medical officer ” and “ the sanitary inspector ”
mean respectively the town clerk the treasurer the
surveyor the medical officer of health and any sani-
tary inspector of the borough;

“ The county ” means the administrative county of
Wilts;

“ The county council ” means the county council of the
county;

“ The general rate fund ” and “ the general rate ” mean
respectively the general rate fund and the general rate
of the borough;

“ The Minister ” means the Minister of Health;

“ The Act of 1936 ” means the Public Health Act 1936;

“ The Public Health Acts ” means the Public Health
Act 1875 and the Acts amending and extending the
same;

38 & 39 Vict.
c. 55.

“ The Act of 1933 ” means the Local Government Act
1933;

“ The Act of 1937 ” means the Local Government Super-
annuation Act 1937;

1 Edw. 8. &
1 Geo. 6. c. 68.

“ Child ” has the same meaning as in the Education Act
1944;

7 & 8 Geo. 6.
c. 31.

PART I.

—cont.

1 & 2 Geo. 6.
c. 56.41 & 42 Vict.
c. 76.

- “ Food ” has the meaning assigned to it by section 100 (Definitions) of the Food and Drugs Act 1938;
- “ Sunday school ” means any school in which children are assembled for instruction on a Sunday or specially for religious instruction whether on a Sunday or not;
- “ Daily penalty ” means a penalty for each day on which any offence is continued by a person after conviction;
- “ Contravention ” includes failure to comply and “ contravene ” shall be construed accordingly;
- “ Telegraphic line ” has the same meaning as in the Telegraph Act 1878;
- “ The signed plan ” means the plan signed in triplicate by Thomas Judson Brooks the chairman of the committee of the House of Commons to whom the Bill for this Act was referred one copy of which has been deposited in the office of the Clerk of the Parliaments House of Lords one in the Committee and Private Bill Office of the House of Commons and one with the town clerk;
- “ Coate Water ” means the reservoir known as Coate reservoir and certain freehold lands and hereditaments surrounding the same in the borough and containing one hundred and fourteen acres or thereabouts which said reservoir and lands are coloured red on the signed plan;
- “ The Lawn ” means certain freehold lands and hereditaments situate in the borough and containing fifty-three acres or thereabouts which said lands are coloured blue on the signed plan;
- “ Lydiard Park ” means certain freehold lands and hereditaments in the rural district of Cricklade and Wootton Bassett in the county of Wilts formerly forming part of the Lydiard Park estate and containing one hundred and fifty-four acres or thereabouts which said lands are coloured green on the signed plan;
- “ Statutory borrowing power ” means a power of borrowing money conferred on the Corporation by or under any enactment except paragraph (a) of subsection (1) of section 215 (Temporary loans &c.) of the Act of 1933;
- “ Statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament authorised to invest trust money and any

mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament of any county council or municipal corporation or other local authority as defined by section 34 (Definitions) of the Local Loans Act 1875 ^{38 & 39 Vict. c. 83.} but does not include annuities rentcharges or securities transferable by delivery or any security of the Corporation;

PART I.
—cont.

“ Authorised security ” means any mortgage stock bond or other security which the Corporation are for the time being authorised to grant create or issue or upon or by means of which the Corporation are for the time being authorised to raise money;

“ The revenue of the Corporation ” includes the general rate fund and all rates Exchequer contributions and other revenues whether arising from land or undertakings or from any other source receivable by the Corporation;

“ Enactment ” includes this Act and any general or local Act Order byelaw or regulation for the time being in force within the borough.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

PART II.

LANDS.

5.—(1) The Corporation notwithstanding that the same may not be immediately required may by agreement purchase or acquire or take on lease and hold any lands which in their opinion it is desirable that the Corporation should acquire for or in connection with the purposes of any of their undertakings powers or duties or for the benefit improvement or development of the borough.

Further powers for acquisition of lands.

(2) When any lands purchased or acquired or taken on lease by the Corporation under this section shall be appropriated to any undertaking or to any of their powers or duties a transfer of the outstanding loan in respect thereof shall be effected to the proper account in the books of the Corporation and pending such appropriation all expenses incurred by the Corporation under this section shall be payable out of the general rate fund.

6.—(1) Notwithstanding anything in the Lands Clauses Acts to the contrary the Corporation may retain and hold and use for such time as they may think fit or may sell lease

Retention and disposal of lands.

PART II.
—cont.26 Geo. 5. &
1 Edw. 8.
c. 51.

exchange or otherwise dispose of in such manner and for such consideration and on such terms and conditions as they may think fit and in consideration either of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under any enactment (other than the Housing Act 1936 or any Act repealed by that Act) and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interest therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange:

Provided that the Corporation shall not without the consent of the Minister sell lease exchange or otherwise dispose of any such lands or any interests therein at a price or rent or for a consideration of a value less than the current market value of such lands or interests but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained:

Provided also that nothing in this section shall be taken to dispense with the consent of any government department to any sale lease appropriation or other disposition of any lands of the Corporation other than lands acquired under any local Act applying to the Corporation in any case in which such consent would have been required if this Act had not been passed.

(2) Nothing in this section shall release the Corporation or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Corporation or any person from or through whom the Corporation may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in like manner and to the same extent as if this Act had not been passed.

Powers with
reference to
leases of lands.

7.—(1) The Corporation may accept a surrender of any lease or letting granted by them of lands acquired under the powers of any enactment and in their discretion grant either to the lessee or tenant under the surrendered lease or letting or to any other person a new lease or letting of all or any of the lands leased or let by the surrendered lease or letting and may grant reversionary leases of all or any of such lands as aforesaid.

(2) The Corporation may enter into and carry into effect any agreement for or with respect to the surrender or grant of any such lease or letting and may in any such lease letting or agreement give to the lessee or tenant or intended lessee or tenant an option or right to purchase the fee simple in reversion or other the reversionary interest of the Corporation of or in all or any of the lands leased or let or agreed to be leased or let at such times and on such terms and conditions as may be determined by the Corporation in their discretion.

(3) Provided that any lease granted by the Corporation in pursuance of this section shall be subject to similar conditions and limitations as are prescribed in section 6 (Retention and disposal of lands) of this Act with respect to leases granted thereunder.

8.—(1) The Corporation may (with the consent of the Minister) lay out and develop any lands at any time belonging to the Corporation and not required for the purposes for which they were acquired and may on any such lands—

(a) erect and maintain houses shops offices warehouses and any other buildings; and

(b) construct sewer drain pave flag channel and kerb streets roads and ways.

(2) The Corporation may use or dispose of the building or other materials of any houses or premises on any lands acquired or appropriated by them which they may deem it necessary or desirable to pull down.

9. The Corporation may enter into and carry into effect agreements and arrangements with the owners of or other persons interested in any lands or buildings which may be acquired by the Corporation under the provisions of any enactment with respect to the reinstatement of any such owners or other persons and with respect to the exchange of lands for that purpose and the Corporation may pay or receive money for equality of exchange.

10.—(1) The Corporation may purchase or take on lease houses and other buildings for persons employed by them and may erect fit up maintain and let any such houses and buildings upon any lands for the time being belonging to the Corporation and (subject to the terms of the lease) upon any lands for the time being leased to the Corporation.

(2) Nothing contained in this section shall empower the Corporation to create or permit a nuisance.

PART III.

STREETS BUILDINGS AND SEWERS.

No building
allowed until
street defined.

11.—(1) Where plans and sections of a new street have been deposited with and approved by the Corporation no person except with their consent shall in any such street commence to erect any new building or to excavate for the foundation thereof until he has defined by posts or in some other suitable manner the approved line width and level of so much of the street as abuts upon or adjoins the land on which the building is to be erected or any land which will be occupied in connection with that building and it shall not be lawful for any person except with such consent to erect the building or any fence nearer to the centre of the street than the posts or other marks by which the width of the street has been defined.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding two pounds.

No buildings
to be erected
until street
formed.

12.—(1) Any person who lays out or intends to lay out a new street or part of a new street shall before any building is begun to be erected abutting on such new street or part of a new street if required by the Corporation so to do construct the carriageway of such new street or such part of the new street as may be required by the Corporation in accordance with the byelaws for the time being in force with respect to new streets and shall also if required sewer such street or such part of such street:

Provided that where any new street is or is intended to be constructed of a length exceeding one hundred yards the Corporation shall not be empowered to require such new street to be constructed in its entire length by one operation but such new street may be constructed in parts and in such event nothing in this section shall prevent the erection of a new building abutting on any part of such street in reference to which the foregoing provisions of this section have been complied with.

(2) The execution of any works under the provisions of this section shall not relieve any person of any liability under section 150 (Power to compel paving &c. of private streets) of the Public Health Act 1875 or under the Private Street Works Act 1892 or under the local Acts for the time being in force within the borough.

(3) Any person who shall offend against this enactment shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

13.—(1) At any time within one month after the deposit of the plans of any new building intended or adapted for use as a dwelling-house (or where such plans have been approved but the erection of the building has not been begun before the passing of this Act at any time before the erection thereof has been commenced) the Corporation may by notice in writing require the provision either before the building is erected or before it is sold let or occupied (as the Corporation shall specify) of sufficient means of communication between the building and a street which is either a highway repairable by the inhabitants at large or has been laid out and constructed in accordance with the byelaws or other provisions for the time being in force with respect to new streets.

(2) If it appears to the Corporation to be necessary that the means of communication to be provided under this section shall be in the form of a street the Corporation may by their notice require a new street to be laid out and if the construction of such means of communication appears to them necessary they may by their notice require constructional work in connection with such means of communication not exceeding that required for a new street by the byelaws or other provisions in force with respect to the construction of new streets.

(3) Where notice of a requirement under this section has been given by the Corporation to any person such person shall not begin to erect or proceed with the erection of any building to which the notice relates nor sell let or occupy such building (as the notice shall specify) until the notice of the Corporation has been complied with or until security has been given to the satisfaction of the Corporation that the notice will be complied with.

(4) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

14.—(1) The Corporation may enter into and carry into effect agreements with persons having a legal interest in lands adjoining any street for the adjustment of the boundary of any such street and for such purpose may give land including land forming part of the street in exchange for other land. For the purposes of this section the Corporation shall be deemed to be the owners of the land forming the site of the street and shall be entitled to convey the same in accordance with an agreement entered into in pursuance of this section.

(2) Provided that no such agreement shall be entered into until the expiration of one month from the date on which notice of the proposals has been given by advertisement in

PART III.
—cont.

some local newspaper circulating in the borough and during such period of one month any four inhabitant householders of the borough by themselves or their agent or the county council if the street is a county road (whether the Corporation shall have claimed to exercise the functions of maintenance and repair of such street or not) may appeal to a court of summary jurisdiction against the proposals and subsections (2) to (7) of section 90 (As to appeals) of this Act shall apply to any such appeal as if the proposals were a decision of the Corporation.

(3) Notwithstanding any agreement entered into under this section the Postmaster-General shall continue to have the same powers and rights in respect of any telegraphic line belonging to or used by him which remains in under upon over along or across the site of any such street as if the same had continued to be part of the street:

Provided that if the Corporation or any person in whom such site is vested desires that such telegraphic line should be altered the enactments of section 7 (Provision as to work which involves alteration in telegraphic line) of the Telegraph Act 1878 shall thereupon apply in all respects as though the Corporation or the said person (as the case may be) were undertakers within the meaning of the said Act.

(4) Notwithstanding any agreement entered into under this section the Central Electricity Board shall continue to have the same powers and rights in respect of any electric lines belonging to or used by them which shall remain in under upon over along or across the site of any street which shall have been conveyed in accordance with such agreement as if the same had continued to be part of the street and if by reason or in consequence of any such agreement it shall be necessary for the Central Electricity Board to alter the position of any such electric lines they shall be at liberty so to do and the reasonable expenses incurred by them in so doing shall be paid to them by the Corporation.

(5) Nothing in this section shall be taken to dispense with the consent of any government department to any appropriation exchange or other disposition of any lands of the Corporation in any case in which such consent would have been required if this Act had not been passed.

Adjustment of
boundaries
of estates.

15.—(1) For the purpose of securing the proper laying out or development of any estate or lands in respect of or in connection with which plans for any new street (including in that expression the widening of an existing street or the widening or adaptation of a road footpath or way so as to

form a new street) are submitted to the Corporation for approval the Corporation may require that provision shall be made for adjusting and altering the boundaries of any such estate or lands or any lands adjacent or near thereto, and for effecting such exchanges of land and the removal imposition or other regulation of covenants restrictions and conditions attaching to such lands as may be necessary or convenient for such purposes and the provision so to be made and the terms and conditions upon which such provision is to be made shall failing agreement between the Corporation and the respective persons interested in such estate or lands be determined on the application of the Corporation or any such person by an arbitrator to be appointed by the Minister and the Corporation may for securing the execution of any such purposes agree to pay and may and shall pay to any such person or persons such sums as may be agreed upon or in default of agreement be determined by arbitration as aforesaid:

Provided that the payment of money by any such person shall not be made a term or condition of any award made under this section otherwise than with his consent.

(2) Any award made under the provisions of this section shall operate to effect any adjustment or alteration of boundaries or exchange of lands or the removal imposition or other regulation of covenants restrictions and conditions attaching to such lands which may be provided for by such award or be necessary for giving effect thereto and shall be duly stamped accordingly and the costs charges and expenses of any such arbitration shall unless and except in so far as the award shall otherwise provide be borne and paid by the Corporation.

(3) Any lands or moneys received by any person in or in respect of any adjustment or alteration of boundaries or exchange of lands under the provisions of this section shall be held by such person subject to the same trusts (if any) and any lands so received shall also be held subject to the same covenants restrictions and conditions (if any) so far as the same are applicable as the lands exchanged therefor. Where any such covenants restrictions or conditions shall in any case be agreed to be inapplicable or be determined by the arbitrator to be inapplicable the same shall be indicated in any agreement or award made under the provisions of this section.

(4) For the purpose of the adjustment or alteration of the boundaries of any such estate or lands as aforesaid the Corporation may themselves purchase any land and may sell or lease the land so purchased in whole or in part at such time or times

PART III.
—cont.

at such price or prices and on such conditions as they may think fit or may appropriate the same for any public purpose approved by the Minister and until such sale or appropriation may occupy manage or let the same or any part thereof in such manner as the Corporation may think reasonable.

Development scheme may be required in connection with new streets.

16.—(1) Whenever application shall be made to the Corporation to approve the laying out of or notice shall be given to the Corporation of intention to lay out a new street the Corporation may require the applicant or the person giving such notice to furnish them with plans and particulars of the proposed development of any neighbouring land belonging to him the development of which is in their opinion likely substantially to affect or be affected by the determination of the site of the proposed street and in such case the date of the making of application or of the giving of notice as aforesaid shall for the purposes of any enactments or provisions in force for the time being with respect to the laying out of new streets be deemed to be the date on which plans and particulars required as aforesaid shall be so furnished.

(2) In this section the expression “lay out a new street” includes the formation of a new street or the widening of an existing street or the widening or adaptation of a road footpath or way so as to form a new street.

(3) If after receiving the plans and particulars referred to in subsection (1) of this section the Corporation shall approve the laying out of any such new street either unconditionally or subject to any modification of such plans and particulars neither the owner of the lands nor his successors in title shall carry out the development of such lands in such a manner as to conflict substantially with such plans and particulars as approved.

(4) If any person shall offend against the provisions of this section he shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding two pounds.

(5) The owner may at any time submit to the Corporation for their approval any alteration in the said plans and particulars and the Corporation may if they think fit approve such alteration.

(6) Nothing in this section shall be deemed to authorise any contravention of any enactment.

Byelaws as to alteration of streets.

17. The Corporation may make byelaws to prevent streets which have been laid out or constructed in accordance with byelaws made under the Public Health Acts from being altered in such a way that if at first so laid out or constructed they would have contravened the byelaws.

18. Where in the opinion of the Corporation repairs the cost of which will not exceed fifty pounds are required in the case of any street not being a highway repairable by the inhabitants at large to obviate or remove danger to any passenger or vehicle in the street the Corporation may execute such repairs as they deem necessary and may themselves pay such cost and the execution of such repairs and the payment of such cost shall not prejudice or affect any statutory provisions for the time being in force relating to private street works and private improvement expenses or similar matters or of section 19 (As to urgent repairs to private streets) of the Public Health Acts Amendment Act 1907.

PART III.

—cont.

As to urgent
repairs of
private streets.

19.—(1) The Corporation may if they think fit in any case vary the relative widths of the carriageway and footway or footways in any street repairable by the inhabitants at large:

Power to vary
width of
carriageways
and footways.

Provided that twenty-one days before commencing any work under this section which will materially reduce the width of any carriageway or footway the Corporation shall send notice of the proposed work to the Minister of Transport.

(2) The Corporation shall not exercise the powers of this section in relation to a county road without the consent of the county council.

(3) The Corporation shall not exercise the powers of this section in respect of the portion of any street situate upon a bridge carrying the street over any railway or upon the approaches thereto without the previous consent in writing of the railway company which consent shall not be unreasonably withheld and any question as to whether any such consent is unreasonably withheld shall be referred to arbitration.

(4) Whenever the Corporation in the exercise of the powers of this section shall add to the carriageway of a street any portion of the footway in which there are any electric lines works or apparatus of the Central Electricity Board that board may and shall if so required by the Corporation alter the position of such electric lines works or apparatus to such a depth below the surface of the carriageway or to such a position under the footway as may be reasonable and the Corporation shall repay to that board the reasonable expenses of and in connection with such alteration as aforesaid.

20.—(1) If not less than three months before commencing any work involving the closing to vehicular traffic of any street or part of a street in the borough either absolutely or to the extent of one-third or more of the width of the carriageway thereof the Corporation shall give notice in writing of their

Restrictions
on rights of
breaking up
streets.

PART III.
—cont.

intention to execute such work to all undertakers having statutory powers to break up that street then when such work has been executed by the Corporation it shall not be lawful for any such undertakers within twelve months of the completion of such work to break up the street or part of a street so closed without the consent of the Corporation which consent shall not be unreasonably withheld and the Corporation may if they think fit and without prejudice to their other rights and powers attach to any consent given under this section such conditions as may be reasonable with respect to the times at which and the period within which the work of the undertakers shall be executed and completed:

Provided that as respects any work executed by any undertakers which but for the provisions of this section would have been lawfully executed nothing in this section shall deprive such undertakers of any right or immunity as between themselves and any person other than the Corporation to which but for the said provisions such undertakers would have been entitled in respect of such work.

(2) Any dispute or difference which may arise between the Corporation and any undertakers under the provisions of the preceding subsection shall be referred to arbitration.

(3) Nothing in this section shall prevent any such undertakers as aforesaid from carrying out extending or enlarging works in any street in case of emergency or prevent any such undertakers from carrying out any works necessary to enable them to perform their statutory duties as such undertakers or their obligations under any contract subsisting at the date of the giving of the notice by the Corporation in default of which they would be liable to any penalty or damages or from making altering repairing extending enlarging or disconnecting communication pipes or service connections or laying service lines between the premises and distributing mains or altering repairing extending enlarging or disconnecting any service line or from laying mains or pipes for the supply of property not previously supplied with gas water or electricity as the case may be. In this subsection the expression "service line" has the meaning assigned thereto by the schedule to the Electric Lighting (Clauses) Act 1899.

62 & 63 Vict.
c. 19.

Crossings for
horses or
vehicles over
footways.

21.—(1) Where the owner or occupier of any premises fronting or abutting on any street repairable by the inhabitants at large habitually uses or permits to be used any kerbed footway or paved footway in such street as a crossing for any horse or horse-drawn or mechanically propelled vehicle (other than a motor-cycle) in passing to and from such premises the Corporation may either—

(a) require the construction across such footway of a carriage-crossing for the purpose aforesaid constructed of such materials and in such manner as they may prescribe; or

(b) allow the use of the footway for the purpose aforesaid subject to the condition that the footway is strengthened or adapted in such manner as the Corporation may prescribe or subject to such other reasonable conditions (if any) as they may impose.

(2) If the Corporation require the construction of any carriage-crossing across the footway or allow the use of the footway subject to a condition that it is strengthened or adapted they may execute such works as may be necessary to secure compliance with such requirement or condition and may recover the expenses of so doing from the owner or occupier.

(3) If the Corporation allow the use of the footway as a crossing for any horse or horse-drawn or mechanically propelled vehicle (other than a motor-cycle) subject to any condition other than the strengthening or adaptation of the footway any person who knowingly uses or permits to be used the footway as a crossing as aforesaid in contravention of that condition shall be liable to a penalty not exceeding five pounds.

(4) Notwithstanding the provisions of section 18 (Crossing for cattle &c. over footways) of the Public Health Acts Amendment Act 1907 every person desirous of forming a carriage-crossing across a footway in any street or of strengthening or adapting any part of any such footway as a carriage-crossing shall apply in writing to the Corporation for an estimate of the cost thereof and after having obtained such estimate may deposit with the Corporation the amount thereof. When such deposit shall have been made the Corporation shall with all convenient speed carry out the works and any difference between the sum so deposited and the actual cost of the works shall be paid to or by the Corporation by or to such person as the case may require.

(5) Nothing in this section shall impose on the owner or occupier any obligation to maintain any crossing constructed or footway strengthened or adapted in pursuance of a requirement of or condition imposed by the Corporation under this section.

22.—(1) In any case in which the forecourt of any premises adjoining a street or any steps or projection placed in any such forecourt or any goods placed therein whether for sale or not is or are a source of danger obstruction or inconvenience to the public the Corporation may require the owner of the premises well and sufficiently to fence such forecourt from the street.

Fencing of
forecourts.

PART. III.
—cont.

(2) Any person who shall fail to comply^{sl} with any requirement under this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Provisions as
to forecourts.

23.—(1) If the Corporation shall by resolution determine that any stall structure or other erection on any forecourt is by reason of its character injurious to the amenities of the street in which such forecourt is situate they may by notice in writing require the owner of or person responsible for such stall structure or other erection within such period (not being less than seven days) as may be specified in the notice to make such alterations to such stall structure or other erection as may be necessary to prevent the same from being injurious to the amenities of such street.

(2) Any person neglecting or refusing to comply with the requirement of any such notice shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Signs over
streets.

24.—(1) In this section “sign” means any banner streamer notice board sign or lettering for the purposes of advertisement or announcement (including the supports thereof) which is suspended or extends for more than two feet over any street or which extends for more than six inches over any street and is more than two feet six inches in height from the top to the bottom thereof.

(2) (a) If it appears to the Corporation that any sign which is placed over any street at the date of the passing of this Act is a source of danger or objectionable by reason of its size construction or situation or an injury to the amenities of the street over which it is placed they may by notice in writing require the owner of or person responsible for the placing of such sign to remove it or to comply with such conditions as may be specified in the notice within such period not being less than seven days as may be specified in the notice.

(b) For a period of two years from the passing of this Act the foregoing provisions of this subsection shall not apply to any sign which was in use on the twenty-sixth day of November nineteen hundred and forty-six.

(3) (a) After the date of the passing of this Act no person shall without the consent of the Corporation place any sign over any street.

(b) The consent of the Corporation under this subsection shall not be withheld except on the ground that in their opinion the sign would be a source of danger or objectionable

by reason of its size construction or situation or an injury to the amenities of the street and such consent may be given subject to such conditions as the Corporation may think fit.

PART III.
—cont.

(4) Any person who—

(a) neglects or refuses to comply with the requirement of any such notice as is referred to in subsection (2) of this section; or

(b) after the date of the passing of this Act places any sign over any street without the consent of the Corporation or without complying with any conditions attached to any such consent;

shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding ten shillings and the Corporation may themselves remove any such sign and any expense incurred by them in so doing may be recovered by them from such person.

(5) The provisions of this section shall not apply to any sign erected or proposed to be erected by a railway company over any private street belonging to such company and forming part of any railway station or depot or the approach thereto.

25.—(1) The Corporation may cause to be put up or painted on a conspicuous part of any house building or place at or near to the corner of any street signs indicating the classified road number of such street and the direction or the distance to towns railway stations public buildings and other places of a public character. Direction signs.

(2) Before putting up or painting a sign on a house building or place the Corporation shall give to the owner of such house building or place notice of their decision so to do.

(3) Any person who shall wilfully and without the consent of the Corporation obliterate deface obscure remove or alter any such sign otherwise than in the course of demolishing or altering the house or building shall be liable to a penalty not exceeding forty shillings and the Corporation may recover the expenses of replacement and making good from such person.

(4) The exercise of the powers conferred by this section shall be subject to the provisions of the Road Traffic Acts 1930 to 1937 with respect to traffic signs and to any regulations made or any general or other directions given by the Minister of War Transport or the Minister of Transport in pursuance of the said provisions.

26.—(1) No person shall place or erect in the borough any hoarding wall (not being a wall forming part of the structure of a permanent edifice) or fence at or within a distance of As to erection of hoardings &c. at street corners.

PART III.
—cont.

ten yards from the corner of any street unless he has given to the Corporation notice of his intention so to do accompanied by plans and particulars of the hoarding wall or fence and the Corporation have approved the placing or erection thereof under this section.

(2) Within one month from the receipt of such a notice from any person the Corporation may give him notice that they disapprove the placing or erection of the hoarding wall or fence or that they approve it only subject to such conditions or to such modifications of the plans and particulars submitted to them as may be specified in the notice:

Provided that a notice shall not be given under this subsection except on the ground that the hoarding wall or fence would by obstructing the view of foot passengers or drivers of vehicles constitute a danger to the traffic in the streets upon adjoining or near to which it is proposed to be placed or erected or (as the case may be) would constitute such a danger unless placed or erected subject to the conditions or modifications specified in the notice.

(3) The Corporation may at any time within the said month give notice that they approve the placing or erection of the hoarding wall or fence in accordance with the plans and particulars submitted to them and if within the said month the Corporation have not given notice under the last foregoing subsection they shall be deemed for the purpose of this section to have approved the placing or erection of the hoarding wall or fence in accordance with those plans and particulars.

(4) Where the Corporation have approved the placing or erection of the hoarding wall or fence it shall not be placed or erected otherwise than in accordance with the plans and particulars submitted as aforesaid or if notice has been given under subsection (2) of this section of any conditions or modifications than in accordance with those conditions and with such plans and particulars as modified by the notice.

(5) Any person who places or erects any hoarding wall or fence in contravention of the provisions of this section shall be liable to a penalty not exceeding five pounds and the Corporation may remove the hoarding wall or fence so placed or erected and may recover the expense incurred by them in so doing from such person.

(6) For the purposes of this section the corner of any street shall be deemed to be the point at which the frontage or boundary line of that street (if necessary continued in a straight line) intersects the frontage or boundary line of any other street (if necessary similarly continued).

(7) The provisions of this section shall not apply to any part of a street with respect to which restrictions have been imposed under section 4 (Prevention of obstruction to view at corners) of the Roads Improvement Act 1925 or by section 1 (Power to adopt standard widths for roads) or section 2 (Restriction of building development along frontages of certain roads) of the Restriction of Ribbon Development Act 1935. 15 & 16 Geo. 5.
c. 68.
25 & 26 Geo. 5.
c. 47.

27.—(1) (a) No wall fence hoarding or other similar structure (in this section referred to as “structure”) of a greater height than six feet six inches above the level of the ground at the nearest boundary of the street shall be erected or brought forward on any land in any street— As to hoard-
ings and
similar
structures.

(i) beyond any building line prescribed by the Corporation in respect of the land under the provisions of any Act; or

(ii) if there be no such line beyond any line which is enforceable by the Corporation for buildings under subsection (2) of section 140 (Provisions as to bye-laws relating to new streets) of the Housing Act 1936; or

(iii) if there be neither of such lines beyond the line to which any house or building erected or brought forward on the land would have to conform under the provisions of the Public Health (Buildings in Streets) Act 1888. 51 & 52 Vict.
c. 52.

(b) Any person who shall offend against the provisions of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding two pounds and the Corporation may take down or remove any structure erected in contravention of those provisions and recover the expenses incurred by them in so doing from the offender.

(2) (a) The Corporation may by notice in writing require the owner or occupier of any land upon which any structure exists at the passing of this Act which would (if erected after the passing of this Act) have contravened the provisions of subsection (1) of this section to remove or alter such structure within such time (not being less than six days) as may be specified in the notice in such a manner as to comply with those provisions and the Corporation shall on demand repay to the owner or occupier of such land the reasonable expenses incurred by him in so doing.

(b) Any person who shall neglect or refuse to comply with a notice from the Corporation given in pursuance of this subsection shall be liable to a penalty not exceeding five pounds

PART III.
—cont.

and to a daily penalty not exceeding two pounds and the Corporation may at their own expense take down or remove and if required by the owner or occupier shall re-erect so as not to contravene the provisions of subsection (1) of this section any structure erected or maintained in contravention of those provisions.

(3) The provisions of this section shall not be enforceable with regard to any structure existing at the passing of this Act for a period of five years from such date and shall not apply to any wooden structure fence or hoarding of a moveable or temporary character erected by a builder for his use during the construction alteration or repair of any building unless the same is not taken down or removed immediately after such construction alteration or repair is complete.

(4) The provisions of this section shall not apply to any wall erected on land belonging to a railway company so long as such land is used by the railway company primarily for railway purposes.

Repair of
hoardings &c.

28.—(1) The Corporation may by notice in writing require—

- (a) the owner of any hoarding wall or similar structure used for advertising purposes to maintain the same in good order and condition;
- (b) the person using any hoarding wall or similar structure for advertising purposes to maintain any advertising matter thereon in good order and condition.

(2) If such owner or other person shall neglect or refuse to comply with any such notice the Corporation may carry out such alterations or repairs as may be reasonably necessary and recover summarily as a civil debt from such owner or other person any expense incurred by them in so doing.

As to erection
of retaining
walls.

29.—(1) Before any person shall erect on any land a retaining wall of greater height than six feet abutting on or adjacent to or within twelve feet of any street he shall submit to the Corporation plans sections and specifications thereof and no such wall shall be erected except in accordance with such plans sections and specifications as may be approved by the Corporation.

(2) Any person who shall erect a retaining wall contrary to the provisions of this section or any owner who after erection shall after reasonable notice in writing from the Corporation requiring him so to do fail to put such wall in proper repair shall without prejudice to any other right or remedy of the Corporation be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(3) The provisions of this section shall not extend or apply to any land belonging to or which may hereafter be acquired by a railway company or to any retaining wall erected thereon.

30.—(1) Every person intending to erect any stand or structure for affording sitting or standing accommodation for not less than twenty persons shall not less than fourteen days prior to the commencement of the erection thereof submit to the Corporation a plan and section thereof and shall comply with such conditions as the Corporation may prescribe for securing the stability of such stand or structure and protection against fire and for securing the safety of persons to be accommodated thereon. Restriction on erection of stands &c.

(2) Any person aggrieved by any conditions prescribed by the Corporation under subsection (1) of this section may appeal in accordance with section 90 (As to appeals) of this Act:

Provided that pending the determination of such appeal twenty or more persons shall not be admitted to such stand or structure unless the conditions prescribed by the Corporation have been complied with.

(3) Any person acting in contravention of this section or offending against any such condition shall be liable to a penalty not exceeding fifty pounds and to a daily penalty not exceeding two pounds.

(4) The provisions of this section shall not apply to any stand or structure erected by a person who is the proprietor of a travelling circus roundabout or amusement fair for the purposes of his business as such.

31.—(1) It shall be lawful for the owner or occupier of any property with the consent in writing of the Corporation to construct in any pavement forming part of any street in the borough any means (in this section referred to as "pavement lights") for the admission of light or air through such pavement to any room or premises situate under or adjoining the same. As to pavement lights.

(2) In giving their consent to the construction of any pavement lights the Corporation may attach thereto such terms and conditions as they may think fit.

(3) Any agreements entered into by the Corporation with any person prior to the passing of this Act which would have been valid under the provisions of this section if made after the passing thereof are hereby confirmed.

PART III.
—cont.
Window blinds
&c.

32.—(1) Any person erecting setting up or placing any blind shade covering or awning over any footway shall so erect set up or place the same that no part thereof shall project over any part of the footway which is less than one foot six inches from the outer edge of the kerb of such footway.

(2) Every such blind shade covering or awning shall be constructed and maintained so as to secure in accordance with the requirements of the Corporation the safety and convenience of the public.

(3) Every person who shall offend against the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

33. If—

As to evasion
by owners of
private street
works
expenses.

- (a) any owner of land fronting adjoining or abutting on a street within the meaning of section 150 (Power to compel paving &c. of private streets) of the Public Health Act 1875 conveys sells leases or otherwise disposes of the part or any portion of the part of that land which fronts adjoins or abuts on that street; and
- (b) any expenses of works executed by the Corporation under the said section 150, in or in relation to that street are apportioned on such part or portion of that land; and
- (c) the Corporation are unable to recover such expenses, in whole or in part from the person to whom such part or portion of that land was conveyed sold leased or disposed of or by the sale of such part or portion of that land; and
- (d) a court of summary jurisdiction is satisfied that such conveyance sale lease or disposal was intended for the purpose of evading the payment of any expenses under the said section 150;

then such expenses or so much thereof as has not been recovered by the Corporation may to such extent as the court may determine be recovered from that owner in the same manner as expenses of the execution of works under the said section 150 may be recovered as though he had not made such conveyance sale lease or disposal and as though the said amount of the said expenses had been apportioned on the land of that owner which before such conveyance sale lease or disposal was made fronted adjoined or abutted on such street.

34.—(1) Where by reason of any improvement made by the Corporation any land shall become land which adjoins or abuts on any street the following provisions shall apply:—

PART III.

—cont.

Elevation of
buildings
erected on
front lands
to require
approval.

(a) If the owner lessee or occupier of any such land shall construct—

(i) any door or entrance in an existing building communicating with that street; or

(ii) any wall or fence by the side of that street; he shall construct the door entrance wall or fence in such position and in accordance with such elevations as may be approved by the Corporation;

(b) If the Corporation within one month after particulars of position and elevations shall have been submitted to them under this section or (where the particulars shall have been submitted to them less than three clear days before a meeting of the council) within five weeks after such submission shall have failed to notify their determination in writing to the person submitting the same the Corporation shall be deemed to have approved of the position and elevations.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding two pounds.

(3) The Corporation shall make compensation to the owner of any land for any loss or damage he may suffer by reason of the setting back or bringing forward of any wall or fence under the provisions of this section.

(4) This section shall not apply to any street which for the time being is subject to restrictions under the Restriction of Ribbon Development Act 1935.

(5) Nothing in this section shall extend or apply to any building (not being a house or building used as offices other than a building so used which forms part of a railway station) railway or work constructed by or belonging to or which may hereafter be constructed by or belong to any railway company in the exercise of their statutory power or to any land held or acquired or which may hereafter be held or acquired by such company with the authority of Parliament so long as any such building railway work or land is used or held by such company primarily for railway purposes.

35. It shall be lawful for a court of summary jurisdiction upon complaint by the Corporation in pursuance of a report by the medical officer or the sanitary inspector that any smoke gas or vapour from any chimney flue or pipe of a wash-house

Power to order
alteration of
chimneys.

PART III.
—cont.

or outbuilding forming part of or in proximity to a dwelling-house is a nuisance to any of the inhabitants of the borough to make an order requiring the owner of such chimney flue or pipe within such time as shall be specified in such order to cause the same to be raised or such other means for preventing or mitigating such nuisance to be adopted as may seem fitting to such court and as shall not involve an expenditure exceeding twenty pounds and any such owner as aforesaid who shall neglect or refuse to obey such order shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding two pounds.

Apportionment to frontagers of expenses of sewer constructed under public highway.

36.—(1) Where the Corporation resolve to construct a sewer in a street or part of a street repairable by the inhabitants at large which has not been previously sewered and the resolution states that the construction of the sewer will in the opinion of the Corporation increase the value of premises fronting adjoining or abutting on such street or part of a street then subject to the provisions of section 38 (Provisions applicable to the last two preceding sections) of this Act the expenses incurred by the Corporation in constructing the sewer so far as they do not exceed the sum authorised by that section shall be apportioned by the Corporation on the premises fronting adjoining or abutting on the street or part of a street according to the frontages of the respective premises as existing at the date when the resolution becomes operative.

(2) Such resolution as aforesaid shall not become operative unless and until notice thereof has been published in a local newspaper circulating in the borough but shall become operative as from the date of such publication. Copies of the newspaper containing the notice shall be sufficient evidence of the publication thereof.

(3) Nothing in this section shall authorise the apportionment of any sum on any land in contravention of any agreement between the Corporation and the owner of the land.

Apportionment to frontagers of expenses of construction of sewer before land became a street.

37.—(1) Where the Corporation have incurred expenses in constructing after the passing of this Act a length of sewer in or under land and that land has subsequently become a street (whether repairable by the inhabitants at large or not) then subject to the provisions of the next succeeding section of this Act the expenses so incurred so far as they do not exceed the sum authorised by that section shall be apportioned by the Corporation on the premises fronting adjoining or abutting on the street according to the frontages of the respective premises.

(2) Where on the construction of the length of sewer compensation became due to the owner of any land in on or over which the length of sewer was constructed in respect of the damage he sustained by reason of such construction and any

sum was set-off against such compensation on account of the value of land belonging to such owner having been enhanced by the construction of the length of sewer this section shall not apply to the length of sewer, or to such part thereof as was constructed in on or over such land as aforesaid.

(3) Nothing in this section shall authorise the apportionment of any sum on any land in contravention of any agreement between the Corporation and the owner of the land.

38.—(1) The sum apportionable under either of the last two preceding sections of this Act shall not exceed the sum certified by the surveyor to be at the time the average cost per lineal yard of providing a sewer having an internal diameter of nine inches in a private street in the borough multiplied by the extent in lineal yards (as so certified) of the sewer or length of sewer in question. Provisions applicable to the last two preceding sections.

(2) As soon as the apportionment has been made the Corporation shall serve on the owners of the several premises affected notice in writing of the sums respectively apportioned to them and the notice shall state the right of appeal hereinafter conferred.

(3) Any owner on whose premises any sum has been apportioned shall be entitled within fourteen days of the service upon him of such notice as aforesaid to appeal to a court of summary jurisdiction against the amount of the sum so apportioned and may on such appeal dispute the correctness of the surveyor's certificate.

If the court finds that the certificate of the surveyor is erroneous the court shall order the revision of the sums apportioned not only to the appellant but also to the owners of the other premises affected.

(4) Whenever a new building (other than a building not requiring a foul water drainage system) is erected on any premises fronting adjoining or abutting on the street or part of the street after the date on which the resolution became operative or the street was laid out (as the case may be) the sum apportioned on those premises shall be recoverable to an extent proportional to the frontage on the street or part of a street of the site of and the land occupied with the new building:

Provided that where the drains of such new building are at the time of its erection made to connect with a sewer other than the sewer the expenses of the construction of which are apportioned no sum shall be recoverable in respect of the building unless and until the drains thereof are connected with the last-mentioned sewer.

PART III.
—cont.

For the purposes of this subsection—

- (a) 'a building shall be deemed to be a new building erected after the date in question unless the erection of the building was completed before that date;
- (b) any such re-erection alteration or extension of a building as is mentioned in the Third Schedule to the Restriction of Ribbon Development Act 1935 shall be deemed to be the erection of a new building:

Provided that references in the said schedule to the date on which the restrictions came into force shall for the purposes of this subsection be construed as references to the date when the resolution became operative or the street was laid out as the case may be.

15 & 16 Geo. 5.
c. 22.

(5) The sum apportioned on any premises shall notwithstanding that no part thereof is immediately recoverable be treated as a local land charge for the purposes of the Land Charges Act 1925 and where part thereof has become recoverable the balance shall be so treated.

(6) No interest shall be chargeable on any apportioned sum or any part thereof until it becomes recoverable.

(7) Where such a resolution as is mentioned in section 36 (Apportionment to frontagers of expenses of sewer constructed under public highway) of this Act has been passed but the construction of the sewer to which it relates has not been completed within two years from the date when the resolution became operative all liabilities of frontagers consequent thereon shall cease to have effect.

(8) If any person from whom an apportioned sum or any part thereof becomes recoverable proves that by reason of the length of frontage of the land occupied with the building in respect of which the sum so recoverable is payable the amount recoverable is disproportionate to the benefit accruing to the premises the Corporation or on appeal a court of summary jurisdiction may remit such part of that sum as they may think just but in such case if another new building is subsequently erected on the land occupied with the first-mentioned building the sum remitted or such part thereof as is proportional to the frontage of the site of and land occupied with that other building shall become recoverable.

(9) Where under this section any sum becomes recoverable in respect of any premises that sum together with interest from the date of service of a demand therefor may be recovered either as a simple contract debt in any court of competent jurisdiction or if the amount does not exceed twenty pounds summarily as a civil debt by the Corporation from the person who is the owner of the premises at the date when a demand

for payment is served and as from that date that sum and interest accrued due thereon shall until recovered be a charge on the premises and on all estates and interests therein.

PART III.
—cont.

39. If on a complaint by the Corporation to a court of summary jurisdiction it is proved to the satisfaction of the court—

As to evasion
by owners of
sewerage
expenses.

- (a) that the owner of any land has conveyed sold leased or otherwise disposed of a portion of the land; and
- (b) that by reason of such disposition any part of the land has ceased to be or has not become land fronting adjoining or abutting on a street within the meaning of section 36 (Apportionment to frontagers of expenses of sewer constructed under public highway) of this Act or as the case may be of section 37 (Apportionment to frontagers of expenses of construction of sewer before land became a street) of this Act; and
- (c) that the disposal of such portion of the land was effected with the intention and for the purpose of the evasion of the payment of expenses under the said sections of this Act;

then the court shall order that such expenses shall be apportioned on the land which immediately before the date of such conveyance sale lease or disposal included the land so conveyed sold leased or disposed of and thereafter such expenses may be recovered from the owner of any part of that land on which a new building within the meaning of the last preceding section of this Act is erected and shall be a charge on any such part of that land and on all estates and interests therein to the same extent and in the same manner as any sum apportioned under either of the said sections 36 and 37 of this Act may be recovered and is charged on the premises under the said last preceding section of this Act.

PART IV.

INFECTIOUS DISEASES AND SANITARY MATTERS.

40.—(1) The occupier of any building which is used for human habitation and in which there is or has been any person suffering from a notifiable disease shall on the application of the medical officer at any time during the illness of such person or within six weeks from the existence of such illness furnish such information within his knowledge as the medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.

Information to
be furnished
in case of
notifiable
disease.

PART IV
—cont.

(2) Any occupier refusing to furnish such information or knowingly furnishing false information shall be liable to a penalty not exceeding forty shillings.

Parents &c.
to notify
certain
diseases.

41.—(1) As from the commencement of this section any parent or other person having the care or charge of a child attending at a school who is aware of or has reason to suspect the occurrence of any disease to which this section applies in any person residing with him or is himself suffering from such a disease and who fails forthwith to notify such occurrence to the head teacher principal or superintendent of the school shall be liable to a penalty not exceeding twenty shillings.

In any proceeding under this subsection a certificate purporting to be under the hand of the head teacher principal or superintendent of the school at which the child named in the certificate is in attendance stating that he has or has not received any notification as required under this section shall be evidence of the facts stated in such certificate unless the defendant shall require that the person by whom the certificate has been signed shall be called as a witness.

(2) The diseases to which this section applies are notifiable diseases and any other disease which the Minister by regulation made under section 143 (Power of Minister to make regulations with a view to the treatment of certain diseases and for preventing the spread of such diseases) of the Act of 1936 declares to be a notifiable disease for the purpose of this section.

(3) For the purpose of this section the expression " school " shall include a Sunday school.

Restrictions on
attendance at
schools and
places of
assembly.

42.—(1) As from the commencement of this section no person of or exceeding the age of sixteen years who has the custody charge or care of a child—

- (a) who is or has been attending any school or any part thereof which for the time being is closed by order of the local education authority or of any committee or body to whom powers of that authority are delegated with the view of preventing the spread of a disease to which this section applies; or
- (b) who is suffering from a disease to which this section applies; or
- (c) who with the view of preventing the spread of a disease to which this section applies has been prohibited from attending school by the medical officer or school medical officer;

shall permit such child to attend any Sunday school or day school or place of public entertainment or assembly without having procured from the medical officer or school medical officer or the medical practitioner attending the child a certificate (which if granted shall be granted free of charge upon application) that in his opinion such child may attend such Sunday school or day school or place of public entertainment or assembly without undue risk of communicating disease to others.

(2) The diseases to which this section applies are notifiable diseases and any other disease which the Minister by regulation made under section 143 (Power of Minister to make regulations with a view to the treatment of certain diseases and for preventing the spread of such diseases) of the Act of 1936 declares to be a notifiable disease for the purpose of this section.

(3) In this section the expression " day school " means a school (not being a county school voluntary school or county college maintained by a local education authority) at which some or all of the children are not boarders but the provisions of this section shall not apply to the attendance at a day school of children who are boarders at that school.

(4) Any person who offends against the provisions of this section shall be liable to a penalty not exceeding forty shillings.

43.—(1) If the Corporation or any committee of the council acting on the advice of the medical officer with the view of preventing the spread of a disease to which this section applies require the closing of any Sunday school or day school or any department thereof or the exclusion of certain children therefrom for a specified time or the exclusion of children from places of public entertainment or assembly for a specified time such requirement shall be at once complied with.

Power to close schools and exclude children from entertainments.

(2) Any person responsible for the conduct or management of any Sunday school or day school or any department thereof or place of public entertainment or assembly wilfully failing to comply with any such requirement shall for every such failure be liable to a penalty not exceeding five pounds.

(3) The diseases to which this section applies are notifiable diseases and any other disease which the Minister by regulation made under section 143 (Power of Minister to make regulations with a view to the treatment of certain diseases and for preventing the spread of such diseases) of the Act of 1936 declares to be a notifiable disease for the purpose of this section.

(4) In this section the expression " day school " means a school (not being a county school voluntary school or county

PART IV.
—cont.

college maintained by a local education authority) at which some or all of the children are not boarders but the provisions of this section shall not apply to the attendance at a day school of children who are boarders at that school.

Removal of
infirm and
diseased
persons in
certain cases.

44.—(1) If the medical officer certifies in writing—

(a) that any person in the borough (in this section referred to as “the patient”)—

(i) is aged or infirm or physically incapacitated and resides in premises which are insanitary owing to any neglect on the part of the occupier thereof or under insanitary conditions; or

(ii) is suffering from any grave chronic disease; and

(b) that the patient is unable to devote to himself or to receive from persons with whom he resides proper care and attention; and

(c) that thorough inquiry and consideration have shown the necessity in the interest of the health of the patient and for preventing injury to the health of or serious nuisance to other persons that he should be removed from the premises in which he is residing;

the medical officer may make application under this section to a court of summary jurisdiction.

(2) On any such application the court upon oral proof of the allegations in the certificate and subject (if they think fit) to examination of the patient by a registered medical practitioner nominated by the court may make an order for the removal of the patient to a suitable institution and for his detention and maintenance therein so long as the order remains in force.

(3) Where an order is for the time being in force for the detention and maintenance of the patient in a suitable institution a court of summary jurisdiction acting for the same place as the court which made the order may on the application of the medical officer make a further order for the transfer of the patient to another suitable institution and for his detention and maintenance therein so long as the further order remains in force.

(4) An order made under the foregoing provisions of this section shall unless rescinded under the next following subsection remain in force for such period not exceeding three months as may be determined by the order or such further period or periods each not exceeding three months as may be determined by a further order or orders made on the

application of the medical officer by a court of summary jurisdiction acting for the same place as the court which made the original order:

Provided that no such further order shall be made unless the court are satisfied by the certificate of the medical officer of the institution in which the patient is for the time being detained and such further evidence if any as the court may require that the conditions which led to the making of the original order continue or would recur if the patient were no longer detained.

(5) At any time after the making of an order under the foregoing provisions of this section an application for the rescission of the order may be made by or on behalf of the patient to a court of summary jurisdiction acting for the same place as the court which made the order and the court may rescind the order accordingly if having regard to the circumstances of the case they are of the opinion that it is right and proper that it should be rescinded.

(6) No application shall be made under this section unless not less than three clear days' notice of intention to make the application and of the time and place when and where the application will be made has—

- (a) in the case of an application under the last foregoing subsection been given by the patient or other person making the application to the medical officer; and
- (b) in the case of any other application been given by the medical officer to the patient or to some person being in charge or formerly in charge of the patient.

(7) An order under this section may be addressed to such officer of the Corporation as the court making the order may think expedient and any person who wilfully disobeys or obstructs the execution of the order shall be liable to a penalty not exceeding ten pounds.

(8) The expenses of the removal or transfer of the patient to or from a suitable institution and of his detention and maintenance therein in pursuance of an order made under this section shall be borne by the Corporation and during any period for which the patient is so detained the Corporation may and if so required by the court shall make towards the maintenance of the dependants of the patient such contributions as the Corporation think fit or as may be directed by the court as the case may be:

Provided that—

- (a) where the institution to which the patient is to be removed is a public assistance institution the authority to which the institution belongs may in

PART IV.

—cont.

19 & 20 Geo. 5.
c. 17.

the exercise of their powers under any scheme made under Part I of the Local Government Act 1929 assume such obligations with regard to the maintenance of the patient and his dependants as may be agreed between that authority and the Corporation;

9 & 10 Geo. 6.
c. 81.

(b) nothing in this subsection shall apply to the cost of maintenance of the patient in a hospital vested in the Minister under the National Health Service Act 1946.

(9) The Corporation shall recover from the patient or from any person legally liable to maintain him or from the patient's estate if he has died any expenses incurred by them under subsection (8) of this section or if the Corporation are satisfied that the persons from whom the expenses are under this subsection recoverable cannot reasonably having regard to their financial circumstances be required to pay the whole of such expenses such part thereof (if any) as those persons are in the opinion of the Corporation able to pay.

(10) The powers of this section shall not be put into operation by the medical officer unless he is authorised by a resolution of the council so to do either generally or in any particular case in which those powers are proposed to be exercised and no order shall be made under this section for the removal or transfer of any person to a suitable institution without the consent in writing of the authority or body having the control thereof and such consent may be given subject to such conditions as may be agreed.

(11) In this section the expression "suitable institution" means a suitable hospital infirmary or other institution or other suitable place provided within the borough or within a convenient distance of the borough.

Sanitary conveniences for workmen.

1 Edw. 8. &
1 Geo. 6. c. 67.

45.—(1) The contractor engaged in or upon the construction or reconstruction of any work not being a work to which section 107 (Building operations) or section 108 (Works of engineering construction) of the Factories Act 1937 applies shall where practicable and if required by the Corporation provide to the reasonable satisfaction of the Corporation and until the completion of any such construction or reconstruction maintain such water or other closets and urinals in or in connection with such work as may be sufficient for the accommodation of the workmen employed.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding two pounds.

46.—(1) A noise nuisance shall be liable to be dealt with as a statutory nuisance under the Act of 1936:

PART IV.

—cont.

Provided that no complaint to a justice under section 99 (Power of individual to make complaint as to statutory nuisance) of the said Act shall be of any effect unless it is signed by not less than three householders or occupiers of premises within hearing of the noise nuisance which is the subject of the complaint.

Noise
nuisance.

(2) In any proceedings under the Act of 1936 in respect of a noise nuisance occasioned in the course of any trade business or occupation it shall be a good defence for the person charged to show that he has used the best practicable means of preventing or mitigating the nuisance having regard to the cost and to other relevant circumstances.

(3) For the purpose of this section a noise nuisance shall be deemed to exist where any person makes or continues or causes to be made or continued any excessive or unreasonable or unnecessary noise which is injurious or prejudicial to health.

(4) Nothing contained in this section shall apply to a railway company or their servants exercising statutory powers.

(5) Nothing in this section shall affect the power of the Corporation to make byelaws under section 249 (Byelaws for good rule and government and suppression of nuisances) of the Act of 1933.

47.—(1) As from the commencement of this section the following provisions shall have effect in the borough:—

Registration
of hawkers of
food and
premises.

(a) No person other than a person keeping open shop for the sale of food shall either by himself or by any person employed by him sell offer or expose for sale any food from any cart barrow or other vehicle or from any basket pail tray or other receptacle unless he is registered with the Corporation;

(b) No premises shall be used as storage accommodation for any food intended for sale from a cart barrow or other vehicle or from a basket pail tray or other receptacle unless the premises are registered as aforesaid.

(2) An application for a person to be registered under this section shall be made by himself and an application for premises to be so registered shall be made by the owner or occupier or intending owner or occupier thereof.

(3) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding two pounds and to a daily penalty not exceeding one pound.

PART IV.
—cont.

(4) (a) The Corporation may refuse to register any such person or premises under this section or (after giving one month's notice to the person registered or in whose name any such premises are registered) may revoke the registration of any person or premises under this section if they are satisfied (i) as regards a person that the public health is or is likely to be endangered by any act or default of his in relation to the quality storage or distribution of food or (ii) as regards premises that the premises are not suitable to be used for the purposes aforesaid:

Provided that before refusing or revoking such registration the Corporation shall serve upon the person applying for registration or upon the person registered or in whose name such premises are registered a notice to appear before a committee of the council not less than seven days after the date of the notice to show cause why the Corporation should not for reasons to be specified in the notice refuse to register or revoke the registration of the person or premises Any such notice shall state the effect of paragraphs (b) and (c) of this subsection.

(b) If the Corporation refuse to register or revoke the registration of any such person or premises they shall if required by the person applying for such registration or the person registered or in whose name the premises are registered deliver to him within seven days of the receipt of such requirement a statement in writing of the ground or grounds upon which such refusal or revocation is based.

(c) Any person appealing to a court of summary jurisdiction under section 90 (As to appeals) of this Act against any such refusal or revocation shall do so within fourteen days from the date of the notice of such refusal or revocation.

(5) The medical officer the sanitary inspector or any other officer of the Corporation appointed for the purpose shall have power at all reasonable times to enter and inspect any premises in the borough in respect of which an application has been received for registration under the provisions of this section and also any premises which he shall have reason to believe are being used as storage accommodation for food intended for sale from a cart barrow or other vehicle or from a basket pail tray or other receptacle.

(6) The Corporation shall keep a register of the persons and premises registered under the provisions of this section.

(7) The provisions of this section shall not apply to any premises registered under section 14 (Registration of premises used in connection with the manufacture or sale of ice-cream or preserved food &c.) of the Food and Drugs Act 1938 or to

any dairy or dairyman registered under Part II (Provisions as to milk dairies and artificial cream) of that Act or under any regulations made thereunder.

PART IV.
—cont.

(8) The provisions of this section shall not apply to any premises used as a theatre cinematograph theatre music hall or concert hall or to any person in respect of the sale or offer or exposure for sale of any food in any such premises.

(9) In this section the expression " food " does not include any substance contained in containers of such materials and so closed as to exclude all risk of contamination.

48.—(1) If the medical officer shall certify that any person is suffering from tuberculosis of the respiratory tract and is in an infectious state and that he is employed in the cooking preparation or handling of food intended for consumption by persons other than himself or members of his household and that his continuance in such employment would in the judgment of the medical officer be detrimental to the public health the Corporation may request such person to stop his employment and on such request being made the Corporation may if they think fit make compensation to him in respect of any loss which he may sustain by reason of such stoppage.

Power to prohibit persons in advanced state of tuberculosis from selling &c. food.

(2) If any such person shall fail to comply with such request the Corporation may apply to a court of summary jurisdiction for an order requiring him to stop his employment and the court shall have power to make such an order if after consideration of all the circumstances it thinks fit to do so and may direct that such compensation as it deems equitable shall be paid by the Corporation to such person.

(3) If any such person fails to comply with any such order he shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

(4) This section shall not apply to any employment or occupation to which the Public Health (Prevention of Tuberculosis) Regulations 1925 apply.

49.—(1) As from the commencement of this section where any person being the owner of any bull ox cow heifer calf sheep lamb goat or pig which is emaciated or diseased and unfit for food is about to slaughter the same or about to cause the same to be slaughtered he shall give not less than twelve hours' previous notice to an authorised officer of such intention and shall on the application of an authorised officer within six weeks from the date of such slaughter furnish such information within his knowledge as the medical officer or

Notice of slaughter of animal unfit for food.

PART IV.
—cont.

sanitary inspector may reasonably require for the purpose of enabling enquiries to be made to trace the disposition of the carcasses or any part thereof:

(2) Any person failing to give such notice or refusing to furnish such information or knowingly furnishing false information shall be liable to a penalty not exceeding ten pounds.

(3) This section shall not apply to the slaughter of any animal to which the Public Health (Meat) Regulations 1924 apply.

1 Edw. 8. &
1 Geo. 6. c. 70.

(4) Nothing in this section shall affect the operation of the Diseases of Animals Acts 1894 to 1937 or of Part IV (Provisions as to diseases of animals) of the Agriculture Act 1937 or of any order licence or act of the Minister of Agriculture and Fisheries made granted or done thereunder.

(5) In this section the expression "authorised officer" means—

(a) the medical officer;

(b) the sanitary inspector; or

(c) any other officer of the Corporation who is by virtue of the Food and Drugs Act 1938 an authorised officer for the purpose of the examination and seizure of meat under the provisions of that Act.

Animals
slaughtered
outside
slaughter-
houses.

50.—(1) As from the commencement of this section where the slaughter of an animal intended for human consumption shall take place outside a slaughter-house and the carcass of the animal shall be brought into a slaughter-house within the borough such carcass and all the organs thereof shall be retained and kept separate and apart from any other meat intended for human consumption until such carcass and organs have been inspected or their removal has been authorised in accordance with the provisions of the Public Health (Meat) Regulations 1924.

(2) Where an offence is committed against the provisions of this section the occupier of the slaughter-house and also the person by whom the carcass is prepared or dressed shall be liable to a penalty not exceeding five pounds.

(3) In this section "animal" "slaughter-house" and "meat" have the same meaning as in the Public Health (Meat) Regulations 1924.

Precautions
against con-
tamination of
food.

51.—(1) The occupier of any premises within the borough in which food (other than (a) milk (b) meat to which the Public Health (Meat) Regulations 1924 apply and (c) food which is packed in tins or other strongly constructed and

impervious cases) is sold or exposed for sale or deposited for the purpose of sale or of preparation for sale or with a view to future sale shall take all such steps as may be reasonably necessary to guard against the contamination of such food by flies and shall cause such food to be so placed as to prevent mud filth or other contaminating substance being splashed or blown thereon.

(2) Any person who shall fail to comply with the provisions of this section shall be liable to a penalty of forty shillings and to a daily penalty not exceeding ten shillings.

PART IV.

—cont.

PART V.

FINANCE AND RATING.

52.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow without the consent of any sanctioning authority the sum or sums requisite for the payment of the costs charges and expenses of this Act and they shall pay off all moneys so borrowed within such period as the Corporation may determine not exceeding five years from the passing of this Act.

Power to borrow.

(2) The provisions of Part IX (Borrowing) of the Act of 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

53. So long as the making of an issue of capital in the United Kingdom without the consent of the Treasury is prohibited by regulations made under the Emergency Powers (Defence) Act 1939 or under that Act as extended by any subsequent enactment including the Supplies and Services (Transitional Powers) Act 1945 or so long as the borrowing of money in Great Britain without the consent of the Treasury is prohibited by any Order made under section 1 of the Borrowing (Control and Guarantees) Act 1946 it shall not be lawful to exercise the powers of borrowing conferred by this Act (other than the power of borrowing to pay the costs charges and expenses of this Act as hereinafter defined) without such consent.

Saving for powers of Treasury.
2 & 3 Geo. 6.
c. 62.
9 Geo. 6. c. 10.
9 & 10 Geo. 6.
c. 58.

54. It shall not be lawful to exercise the powers of borrowing conferred by this Act otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945.

As to exercise of borrowing powers.
8 & 9 Geo. 6.
c. 18.

PART V.

—cont.

Application of
Act of 1933
to existing
sinking funds.

55. Sections 213 (Sinking fund) and 214 (Adjustments of sinking fund) of the Act of 1933 shall apply with respect to any sinking fund formed by the Corporation for the repayment of any money borrowed (otherwise than by the issue of stock) before the passing of this Act under any statutory borrowing power as if it had been borrowed by way of mortgage and the Corporation shall make such adjustments of any existing sinking funds as may be proper.

Power to
borrow by
issue of bonds.

56.—(1) In addition to any other form of borrowing the Corporation may exercise any statutory borrowing power by the issue of bonds (to be called “Swindon Corporation bonds” and in this Act referred to as “bonds”) in accordance with the provisions of this Act.

(2) Where the Corporation raise money by the issue of bonds sections 209, 210, 211, 212, 213, and 214 of the Act of 1933 shall apply as if the money had been raised by borrowing by mortgage under that Act and bonds were mortgages within the meaning of that Act.

(3) The provisions set out in the schedule to this Act shall have effect with regard to bonds.

62 & 63 Vict.
c. 9.

7 Edw. 7. c. 13.

54 & 55 Vict.
c. 39.

(4) Bonds shall be deemed to be loan capital or funded debt within the meaning of section 8 (Duty on loan capital) of the Finance Act 1899 as amended by section 10 (Reduction of duty on loan capital issued for the purpose of the conversion or consolidation of existing capital) of the Finance Act 1907.

(5) The provisions of section 115 of the Stamp Act 1891 (which relates to the composition for stamp duty) shall with the necessary adaptations apply in the case of bonds as if those bonds were stock or funded debt within the meaning of that section.

Dividend
warrants by
post.

57.—(1) The Corporation may give notice to any person being registered as a holder of any authorised security (other than stock) that they intend to send interest or dividends to him by post if he does not object and if such person does not within fourteen days from the receipt of such notice give notice to the Corporation of such objection the Corporation may from time to time send orders for the payment of interest or dividend warrants by post to the address of such person appearing in the register:

Provided that if such person give notice to the Corporation that he desires such orders or warrants to be sent to another person at a given address the Corporation may from time to time send the same by post to such other person at such address.

(2) Where more persons than one are registered as joint holders of any authorised security any one of them may for the purpose of this section be regarded as the holder of the security unless notice in writing to the contrary has been given to the Corporation by any other of them.

(3) The posting by the Corporation of an order for the payment of interest or a dividend warrant in pursuance of this section shall as respects the liability of the Corporation be equivalent to the delivery of the order or warrant to the registered holder of the authorised security.

(4) Every order or warrant so sent by post shall be deemed to be a cheque and the Corporation shall in relation thereto be deemed a banker within the Bills of Exchange Act 1882.

45 & 46 Vict.
c. 61.

58. If any money is payable to a holder of any authorised security being a minor the receipt of his guardian shall be a sufficient discharge to the Corporation. Receipts in case of minors.

59.—(1) Notwithstanding anything contained in this or any other Act or order on and after the thirty-first day of March nineteen hundred and forty-eight the Corporation may, (if they think fit) establish a fund to be called “ the consolidated loans fund ” to which shall be paid— Consolidated loans fund.

(a) all moneys borrowed by the Corporation by the issue of authorised securities together with any moneys borrowed without security in connection with the exercise of any statutory borrowing power;

(b) all moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are applied by the Corporation with due authority to another capital purpose; and

(c) the appropriate sums provided in each year out of other funds of the Corporation to comply with the terms and conditions as to repayment attaching to their several borrowing powers or otherwise provided for the repayment of debt:

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys so borrowed or received and of all sums provided by the Corporation as aforesaid before the date on which the consolidated loans fund is established.

(2) The moneys of the consolidated loans fund shall be used or applied by the Corporation—

(a) in the redemption of authorised securities the purchase of bonds or stock for extinction or the repayment of any moneys borrowed by the Corporation; and

PART V.
—cont.

- (b) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Corporation:

And the moneys of the consolidated loans fund not used for applied in these ways or intended to be so used or applied within a reasonable period shall be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund shall not except with the consent of the Minister be used or applied otherwise than as provided in this section.

(3) There shall also be transferred to the consolidated loans fund such sums as are necessary to meet interest charges and the financing and other revenue expenses connected with the management of that fund and separate account shall be kept of these sums and their application.

(4) The Corporation may pay into the consolidated loans fund any moneys forming part of any reserve capital renewal and repairs depreciation contingency insurance accident art superannuation or other similar fund (hereinafter referred to as "the lending fund") and not for the time being required for the purposes thereof and such moneys shall be deemed to be moneys borrowed by the Corporation within the meaning of subsection (1) of this section and shall be used accordingly subject to the following conditions:—

(a) the moneys so used shall be repaid to the lending fund as and when required for meeting the obligations for which the lending fund was established; and

(b) there shall be paid out of the consolidated loans fund to the general rate fund an amount equal to the interest on any moneys so used and for the time being not repaid at such rate per centum per annum as may be determined by the Corporation to be equal as nearly as may be to the average rate of interest payable by the Corporation on their current borrowings and in the accounts of the general rate fund an amount equal to the interest as aforesaid (subject in the case of any of the said funds to any prescribed limit on the amount thereof) shall be credited to the lending fund.

(5) Save as in this section expressly provided all the obligations of the Corporation to the holders of authorised securities shall continue in force.

(6) The powers conferred by this section shall not be put into operation by the Corporation except in accordance with a scheme to be approved by the Minister and such scheme

may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

PART V.
—cont.

(7) Any scheme approved by the Minister under this section may be altered amended or revoked by a scheme made in like manner as the original scheme.

60.—(1) The Corporation may (if they think fit) establish a fund to be called “ the insurance fund ” with a view to providing a sum of money which shall be available for making good all such losses damages costs and expenses as may from time to time be specified in a resolution of the Council (in this section referred to as “ the specified risks ”). Insurance fund.

(2) The establishment of an insurance fund under this section shall not prevent the Corporation from insuring in one or more insurance offices against the whole or any part of all or any of the specified risks.

(3) In each year after the establishment of the insurance fund the Corporation shall pay into that fund either—

- (a) such a sum as shall in their opinion be not less than the aggregate amount of the premiums which would be payable if the Corporation fully insured in some insurance office of good repute against the specified risks; or
- (b) if the Corporation insure in some insurance office against the whole or part of all or any of the specified risks such sums as will together with the premiums paid for the last-mentioned insurance be not less than the aggregate amount aforesaid.

(4) When the insurance fund shall amount to the prescribed amount (as hereinafter defined) the Corporation may if they think fit discontinue the yearly payments to the fund but if the fund is at any time reduced below the prescribed amount the Corporation shall recommence and continue the yearly payments to that fund in accordance with subsection (3) of this section until the fund be restored to the prescribed amount.

(5) The Corporation shall provide the yearly payments aforesaid by contributions from the general rate fund and shall show the same in their accounts under the separate heading or division in respect of the particular undertaking department or service of the Corporation which if the specified risks were insured against in an insurance office would be properly chargeable with the payment of the premium of such insurance.

(6)(a) Except so far as the insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet losses damages costs and expenses in respect

PART V.
—cont.

of the specified risks all moneys for the time being standing to the credit of the fund shall (unless applied in any manner authorised by this or any other Act) be invested in statutory securities and the interest and other annual proceeds received by the Corporation in respect of such investments shall be carried to the general rate fund.

(b) In addition to the sum required to be paid into the insurance fund by subsection (3) of this section the Corporation shall in every year so long as the fund is less than the prescribed amount carry to the credit of that fund out of the general rate fund an amount equal to the interest and other annual proceeds carried to the general rate fund in pursuance of the last preceding paragraph.

(c) If and so long as the insurance fund amounts to the prescribed amount the interest and other annual proceeds received by the Corporation in respect of or on investments forming part of the insurance fund and carried to the general rate fund may be apportioned in the accounts of the Corporation between the several undertakings departments or services liable to contribute to the insurance fund in such shares or proportions as may be equitable.

(7) (a) The insurance fund shall be applied to meet any losses damages costs or expenses sustained by the Corporation in respect of the specified risks in the order of the dates on which such losses damages costs or expenses become ascertained and if at any time and from time to time the insurance fund shall be insufficient to make good any such losses damages costs or expenses the Corporation may with the sanction of the Minister borrow at interest under and subject to the provisions of Part IX (Borrowing) of the Act of 1933 such sums of money as will be necessary to make up the deficiency.

(b) The amounts of the annual charges in respect of interest on and repayment of principal of any sums borrowed in pursuance of this subsection and the amounts of any such deficiencies as aforesaid not made up by borrowing shall be paid out of the general rate fund and charged in the accounts of the Corporation under the separate headings or divisions in respect of such undertakings departments or services of the Corporation and in such proportions as the Corporation may determine having regard to the risks through which such deficiencies arise.

(8) In this section "the prescribed amount" means such sum as may from time to time be prescribed by resolution of the council.

Art fund.

61.—(1) The Corporation may (if they think fit) establish a fund to be called "the art fund" to provide for the purchasing of any pictures sculptures or other objects of artistic

scientific or historical interest which in their opinion it is desirable at any time to acquire for exhibition in and as additions to the collection in the town hall civic offices library or other building of the Corporation and such fund shall be formed by annually appropriating thereto out of the general rate fund such an amount as the Corporation may from time to time determine not exceeding in any financial year the amount (calculated in accordance with the rules made under sections 9 (Provisions as to precepts) and 58 (Power to make rules) of the Rating and Valuation Act 1925) which would be produced by a rate of one-fifth of a penny in the pound levied in that year in the borough: 15 & 16 Geo. 5. c. 90.

Provided that when the art fund shall amount to the sum of ten thousand pounds the Corporation shall discontinue such annual payments but if the said fund is at any time reduced below the sum of ten thousand pounds the Corporation may recommence and continue the annual payments until the said fund be restored to the sum of ten thousand pounds.

(2) (a) Pending the application of the art fund to the purposes authorised in the foregoing subsection the moneys in the said fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment or use of the moneys in the art fund in manner provided by this subsection shall be carried to and form part of the general rate fund and (subject to the limitation imposed by subsection (1) of this section) an amount equivalent to such income shall be credited to the art fund.

62. The Corporation may pay out of the general rate fund and general rate— Subscriptions to local government associations and other expenses.

(a) reasonable subscriptions whether annually or otherwise to the funds of any association of local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Corporation at conferences or meetings of such associations or any of them and the cost of purchasing reports and contributing towards the expenses of the proceedings of any such conferences or meetings;

(b) the reasonable expenses of the Corporation in providing public entertainments on the occasion of or otherwise in connection with any public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the borough.

PART V.
—cont.Power to grant
allowances or
gratuities in
certain cases.

63.—(1) The Corporation may if they think fit grant a gratuity by way either of a lump sum or of periodical payments to the widow or dependants of any employee who may die in their service not exceeding in the aggregate an amount equal to twice the amount of the annual emoluments of the employment:

Provided that this section shall not apply—

- (a) in the case of a widow to whom a pension is granted in pursuance of section 9 (Allocation of part of superannuation benefits to wife or husband) of the Act of 1937; or
- (b) in the case of a widow or dependant entitled in consequence of the death of such employee to death benefit under the National Insurance (Industrial Injuries) Act 1946 or to compensation under the Workmen's Compensation Acts 1925 to 1943.

9 & 10 Geo. 6.
c. 62.

(2) Every such allowance or gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such employee would have been charged or been paid if he had continued in his employment.

Annuities for
spouses.

64.—(1) The Corporation may (if they think fit) from time to time make and operate a scheme or schemes for securing that in such circumstances and subject to such conditions as to proof of good health and other matters as may be specified in such scheme or schemes the provisions of section 9 (Allocation of part of superannuation benefits to wife or husband) of the Act of 1937 and of any rules made thereunder may be applied with any necessary modifications and adaptations to either or both of the following (that is to say):—

- (a) Any contributory employee of the Corporation who so requests the Corporation in writing at any time after the date on which he would if he ceased to hold his employment become entitled to a superannuation allowance under paragraph (b) or (c) of subsection (1) of section 8 (Eligibility for superannuation allowance and scale of allowances) of the Act of 1937 and to the spouse of such employee being—

- (i) the spouse to whom he is married on the date on which he becomes entitled to a superannuation allowance under the said paragraph (b) or (c) and who has not ceased to be his spouse at the date of the contributory employee's death; or

- (ii) the spouse to whom he is married at the date of his death if he dies before ceasing to hold his

office or employment and if he had so ceased immediately before his death he would have been entitled to a superannuation allowance under the said paragraph (b) or (c);

so that if such spouse survives the contributory employee the Corporation may grant a pension to such spouse from the date of the contributory employee's death at any time after such request is made;

- (b) Any contributory employee who so requests the Corporation in writing at any time after he has completed ten years' service and to any superannuation allowance to which such contributory employee may become entitled under paragraphs (a) (b) or (c) of subsection (1) of section 8 of the Act of 1937 or to which he would have been entitled under paragraph (a) of that subsection if immediately before his death the provisions of that paragraph had been regarded as applicable to him.

"(2) A scheme made under this section shall come into operation when but not until it is approved by the Minister.

(3) In this section the several words and expressions to which meanings are assigned by section 40. (Interpretation) of the Act of 1937 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

65. If a justice is satisfied on complaint by any rate collector or other authorised officer of the Corporation that any person is quitting or about to quit any premises and has failed to pay on demand any general rate or any water or electricity rate or charge which may be due from him to the Corporation and intends to evade payment of the same the justice may in addition to issuing a summons for non-payment of the same issue a warrant under his hand authorising the person named therein to seize forthwith and detain the goods and chattels of the defaulter until the complaint is determined upon the return of the summons.

Recovery of rate &c. from persons removing.

66. For the purposes of section 15 (Recovery of rates from tenants and lodgers) of the Rating and Valuation Act 1925 the rates due from a person rated for any hereditament within the borough shall be deemed to be in arrear if such rates are not paid within two months after lawful demand in writing has been made for the same.

Recovery of rates from tenants and lodgers.

PART V.

—cont.

Recovery of
rates from
certain
owners.

67.—(1) Where the owner of any hereditament has agreed with the occupier thereof that the owner shall pay the general rate charged on such hereditament the owner shall be liable to pay to the Corporation so much of any payment in respect of rent received by him from the occupier as shall represent the proportion of rate included in such payment and so much of such payment may on proof of such agreement be recovered by the Corporation from the owner in the same manner and subject to the same conditions under and subject to which rates are recoverable from occupiers of rated hereditaments.

The remedy of the Corporation under this section shall be in addition and without prejudice to their other remedies for the recovery of rates.

(2) For the purposes of this section the expression “owner” in relation to a hereditament means the person who is entitled to receive the rent payable in respect thereof.

(3) This section shall not apply to any hereditaments to which subsection (1) of section 11 (Rating of and collection of rates by owners) of the Rating and Valuation Act 1925 applies by virtue of a resolution of the council.

As to operation
of section 11
of Rating and
Valuation Act
1925.

68. The Corporation may at any time by resolution determine with respect to any hereditament for the time being belonging to them the rent of which is payable or is collected at intervals of less than a quarter of a year to do any of the things which owners may do by agreement with the rating authority under subsection (2) of section 11 (Rating of and collection of rates by owners) of the Rating and Valuation Act 1925 with the like conditions and consequences (other than the condition as to agreement in writing with the rating authority) as are applicable to owners under that section.

Demand com-
plaint informa-
tion or
summons may
contain several
sums.

69. There may be included—

(a) in one and the same demand or in any schedule thereto any general rate water rate charges for the supply of electricity and any charges (not exceeding twenty pounds) for electrical fittings; and

(b) in one and the same complaint information or summons or in any schedule thereto any water rate and any charges for the supply of electricity and any charges (not exceeding twenty pounds) for electrical fittings:

Provided that the rates or charges are due and payable to the Corporation from the same person whether under the same or different enactments from time to time in force in the borough.

70. If the Corporation commence proceedings for the summary recovery of any sum due for a supply of electricity or water any other sum due or payable to the Corporation by the same consumer in respect of the sale or hire of any apparatus or fittings supplied or provided by them for or in connection with the consumption or use of electricity or water or in respect of the provision of materials and work in connection therewith or the fixing setting up or repairing altering maintaining or removal thereof may be included in the same summons and may be recovered summarily as a civil debt together with the sum due for the supply of electricity or water provided that the sum so included as aforesaid does not exceed twenty pounds in any one summons.

PART V.
—cont.
As to recovery
of sums due
for fittings &c.

71. Any person who for the purpose of operating any prepayment meter through which electricity is supplied to him or to premises occupied by him frequently or habitually uses any thing other than the coin of the realm for which such prepayment meter is designed and intended to be operated shall be liable to a penalty not exceeding five pounds.

Fraudulent
abstraction of
electricity.

72. The Corporation may levy and recover such charges as they think fit for taking at the request and for the convenience of any consumer at a time other than that of the periodical meter readings the reading of any electricity or water meter fixed in any premises:

Charges for
special read-
ings of
electricity and
water meters.

Provided that such charges shall not exceed the sum of two shillings and sixpence for each reading.

PART VI.

MISCELLANEOUS.

73. The Corporation and the Institute of Municipal Superannuation of employees of the Corporation on such terms and conditions as may be agreed and when such agreement is made the provisions of the Act of 1937 and of any Act amending that Act shall have effect in relation to the said institute and any employee so admitted as if the institute were a local authority and the employee were a contributory employee in the service of a local authority subject however to such modifications thereof as may be mentioned in the agreement:

Superannua-
tion of em-
ployees of
Institute of
Municipal
Treasurers and
Accountants
(Incorporated).

PART VI.
—cont.

Provided that an agreement under this section shall not have effect until it has been approved by the Minister and may be amended by a subsequent agreement so approved.

Power to provide concert halls &c.

74.—(1) The Corporation may provide concert halls entertainment rooms reading rooms pavilions and bandstands with all offices refreshment rooms kitchens cloak-rooms lavatories conveniences and appliances necessary and suitable in connection therewith.

(2) For the purposes aforesaid the Corporation may—

- (a) erect or adapt buildings in any public park or pleasure ground belonging to them;
- (b) acquire buildings or acquire land and erect buildings thereon;
- (c) with the consent of the Minister adapt any premises or erect buildings on any land belonging to them but not already appropriated to entertainment purposes;
- (d) hire any premises;

and may provide erect and maintain shops and offices as part of the buildings so acquired or erected.

(3) The Corporation may furnish and equip any premises provided by them under this section.

Power to provide &c. entertainments &c.

75.—(1) The Corporation may use or allow to be used or let any premises provided under subsection (1) of the last preceding section for concerts displays exhibitions dances and other entertainments (including cinematograph entertainments stage plays and variety entertainments and whether theatrical costume is or is not used in connection therewith and either with or without appropriate scenery) and may themselves provide or arrange for the provision of or contribute towards the expenses of any such concerts displays exhibitions dances or entertainments in such premises or in any park or recreation ground for the time being vested in them or under their control or upon any land belonging or leased to them or in any building for the time being in or upon any such park recreation ground or land and may make or allow to be made such charges as they think fit in connection therewith:

Provided that the Corporation shall not under the provisions of this subsection—

- (a) exhibit any cinematograph film except for or in connection with the advancement of art education drama science music or literature; or

- (b) exhibit within a period of twelve months after it is first generally released in Great Britain any cinematograph film which commonly forms the main item of a cinematograph entertainment; or
- (c) charge for admission to any exhibition of a cinematograph film which commonly forms the main item of a cinematograph entertainment a price less than the lowest price then current for admission to cinematograph theatres in the borough for ordinary showings; or
- (d) grant or let the use of any premises or any part thereof for the purposes of a cinematograph entertainment except on the best terms that can be obtained except when such premises are let to any person or organisation for a charitable educational cultural social or public purpose.

(2) (a) The Corporation may in connection with such concerts displays exhibitions dances or entertainments provide and sell or authorise or arrange for the provision and sale of refreshments of all kinds subject to the provisions of all Acts relating thereto and of programmes of any concerts displays exhibitions dances or entertainments given in pursuance of this section.

(b) The Corporation or any person appointed by them in that behalf may apply for and hold licences for the sale of beer or intoxicating liquors or of tobacco for the purposes of this subsection.

(3) The Corporation may make byelaws for securing good and orderly conduct during any concerts displays exhibitions dances or entertainments given in pursuance of this section.

(4) The Corporation may pay or contribute towards the cost of providing and maintaining in public places in or near the borough and on public service vehicles and omnibuses plying in or near the borough and in newspapers published in the county of Wilts advertisements of any concerts displays exhibitions dances or entertainments given or provided in pursuance of this section.

(5) The net amount of the expenses incurred by the Corporation under this section when added to the net amount of the expenses incurred by them in the provision of entertainments under section 56 (Further powers as to parks and pleasure grounds) of the Public Health Act 1925 shall not in any one year exceed the amount (calculated in accordance with the rules made from time to time by the Minister under sections 9 (Provisions as to precepts) and 58 (Power to make rules) of the Rating and Valuation Act 1925) which would be produced by a rate of twopence in the pound: 15 & 16 Geo. 5. c. 71.

PART VI.
—cont.

Provided that the limitation hereby imposed shall not apply in respect of any excess rate which may be approved by the Minister under the provisions of subsection (3) of section 56 of the Public Health Act 1925.

(6) Nothing in this section shall affect the provisions of any enactment by virtue of which a licence is required for the public performance of stage plays or for public music or dancing or any public entertainment of the like kind or cinematograph exhibition.

Charges for
and letting of
parks &c. for
games.

76. When any portion of any park or place of public resort or recreation is set apart by the Corporation for any purpose under section 76 (Powers as to parks and pleasure gardens) of the Public Health Acts Amendment Act 1907 the Corporation may permit the exclusive use by any club or other body or persons of any such portion so set apart as aforesaid and of any pavilions buildings or refreshment or other rooms or conveniences subject to the payment of such charges and the observance of such conditions as the Corporation may think fit:

Provided that nothing in this section shall empower the Corporation to permit at one and the same time the exclusive use of more than one-half of the area of any park or place of public resort or recreation for the time being belonging to them or under their control or more than one-quarter of the total area of all such parks and places.

As to use of
parts of
recreation
grounds for
parking places.

77.—(1) The provisions of section 68 (Power to provide parking places for vehicles) of the Public Health Act 1925 as amended by section 16 (Extension of powers of local authorities as to parking places) of the Restriction of Ribbon Development Act 1935 shall extend to enable the Corporation from time to time to utilise as lands which may lawfully be appropriated as a parking place or as parking places for vehicles such part or parts of their parks recreation grounds or pleasure grounds not exceeding in the case of any park recreation ground or pleasure ground one acre or one-eighth of the area of such park recreation ground or pleasure ground (whichever may be the less) as the Minister may sanction and the provisions of the said section relating to the utilisation for parking places of land not forming part of a street shall mutatis mutandis apply and have effect for the purposes of this subsection.

(2) The provisions of section 90 (Power of local authorities with respect to use of highways by public service vehicles and with respect to stations for such vehicles) of the Road Traffic Act 1930 except subsections (1) (7) and (9) thereof shall apply to any parking place provided under this section.

20 & 21 Geo. 5.
c. 43.

78.—(1) The Corporation may purchase by agreement (subject to any existing tenancies) any lands adjoining any part of Coate Water the Lawn or Lydiard Park (all of which together with any lands acquired under the powers of this subsection are in this and the next succeeding section referred to as “the said lands”) or convenient to be held therewith and may enter into and carry into effect any contracts or agreements necessary or proper for the purpose and the Corporation shall hold and may use manage control and develop and shall be deemed to have acquired the said lands for the purposes and subject to and in accordance with the powers and provisions contained in this and the next two succeeding sections.

PART VI.

—cont.

Powers of
development
of lands at
Coate Water
the Lawn and
Lydiard Park.

(2) The Corporation may exercise the following powers with respect to the said lands and all buildings now or hereafter erected thereon (which buildings are in this section referred to as “the said buildings”) (that is to say):—

(a) They may fence and improve the said lands and improve and extend the said buildings and lay out form fence construct and maintain grounds for games sports entertainments amusements exhibitions displays recreation and other purposes and also gardens roads riding tracks footpaths ways walks fences plantations ornamental lakes and spaces for physical drill and exercise and may plant trees and shrubs for the purpose of shelter or ornament and erect and provide buildings shops enclosures pavilions stands lavatories kiosks and seats;

(b) They may close the said lands and buildings against the public and make and recover such reasonable charges as they may think fit for admission to and for the use of the whole or any part of the said lands and buildings and the enclosures pavilions stands lavatories and kiosks therein and for the use of chairs and for parking motor vehicles and other vehicles in any part of the said lands and buildings other than any part of the said lands dedicated as a public highway or added to a highway under paragraph (2) of this subsection;

(c) (i) They may subject to the provisions of all Acts relating thereto sell and supply or enter into any agreement or arrangement with any person for the sale and supply or let any rights (exclusive or otherwise) of selling and supplying refreshments to the public resorting to and using any of the said lands and buildings to which the public have access and may erect or permit the erection for those purposes of such

PART VI.

—cont.

- buildings and the enclosure and provision of such spaces and accommodation as may be requisite or necessary for adequate and proper catering;
- (ii) They or any person appointed by them in that behalf may apply for and hold licences for the sale of beer or intoxicating liquors or of tobacco for the purposes of this paragraph;
- (d) They may let for such term not exceeding twenty-one years and subject to such covenants and conditions as they think fit the whole or any part or parts of the said lands and buildings;
- (e) They may set apart and appropriate the whole or any portion of the said lands and buildings for such purposes of public utility instruction or benefit for such periods and on such terms and conditions as they may think fit;
- ¹² (f) They may in any portion or portions of the said lands lay out and maintain golf courses bowling greens cricket hockey and football grounds tennis courts and croquet lawns and grounds for other games and recreation and provide the necessary proper and convenient houses pavilions works buildings garages equipment conveniences appliances and apparatus for use in connection therewith and may do all such acts and employ such persons as may be required for the purposes of this section and may make and recover such reasonable charges for admission to and use of such golf courses bowling greens cricket hockey and football grounds tennis courts and croquet lawns and grounds for other games and recreation and the houses pavilions works buildings garages equipment conveniences appliances and apparatus in connection therewith respectively and for the right of bathing fishing and skating as they may from time to time prescribe and may make and enforce byelaws with respect thereto and for regulating the use thereof respectively and the conduct of persons using the same or resorting thereto:

Provided that the Corporation shall not in connection with any garages provided by them themselves undertake repairs to or the rendering of services for motor vehicles (other than vehicles belonging to the Corporation and used in the public service) or the supply of fuel or spare parts for use in or in connection with such vehicles;

- (g) (i) They may from time to time let to any club company or body of persons any portions of the said

lands which may have been or which may be intended to be laid out and maintained as golf courses bowling greens cricket hockey and football grounds tennis courts and croquet lawns and grounds for other games and recreation together with the houses pavilions works buildings garages equipment conveniences appliances and apparatus (if any) provided in connection therewith;

(ii) Any lessee or tenant of the Corporation under this paragraph shall have the like powers of making and recovering reasonable charges for admission to and the use of the golf courses bowling greens cricket hockey and football grounds tennis courts croquet lawns and grounds for other games and recreation and the houses pavilions works buildings garages equipment conveniences appliances and apparatus as are conferred upon the Corporation by this subsection;

- (h) They may exercise over and in respect of the said lands and buildings any powers conferred upon the Corporation by the Public Health Acts so far as such Acts relate to public walks pleasure grounds open spaces or playing fields;
- (i) They may make construct and maintain streets roads sewers and drains on any part of the said lands and may if they think fit dedicate any such street or road to public use or utilise any part of the said lands for the widening and improvement of a highway;
- (j) They may appoint and pay officers and servants to perform any services in connection with the said lands and buildings and may remove such officers and servants;
- (k) They may provide and maintain bathing cabins huts and tents thereon and make and recover reasonable charges for the use of such bathing cabins huts and tents; and
- (l) They may make and recover reasonable charges for the use of the said lands for the purposes of camping and for the erection of bathing cabins huts and tents thereon:

Provided that nothing in this section shall deprive the Ecclesiastical Commissioners for England or their successors in title (hereinafter called "the commissioners") of any rights to take water or take and use waters or diminish any rights privileges or easements of or appertaining to the commissioners or their estates or lands in that behalf as provided in section 35 (For protection of Ecclesiastical Commissioners)

PART VI.

—cont.—

4 & 5 Geo. 5.
c. cviii.

of the Swindon Corporation (Wilts and Berks Canal Abandonment) Act 1914 or empower the Corporation otherwise than in accordance with the said section—

- (a) to withdraw water from the Coate reservoir;
- (b) to obstruct or divert the supply of water through the culvert underneath the Coate reservoir; or
- (c) to regulate the hatches governing the flow of water through the estates and lands of the commissioners or between the Coate reservoir and the Wilts and Berks canals:

Provided also that the exercise of the powers of this subsection shall be subject to the like limitations as are contained in the proviso to subsection (1) of section 75 (Power to provide &c. entertainments &c.) of this Act.

(3) The Corporation may exercise all or any of the following powers with respect to the mansion houses and all or any other buildings now or hereafter erected at the Lawn and Lydiard Park respectively:—

- (a) Notwithstanding anything in any other Act they may provide and maintain an art gallery and make and recover such reasonable charges for admission to the art gallery and the use thereof as they may from time to time prescribe;
- (b) They may hold assemblies and conferences;
- (c) They may let the whole or any part for the purpose of assemblies conferences and the delivery of lectures;
- (d) They may appoint and pay officers and servants to perform any services and may remove such officers and servants.

Temporary use
of lands at
Coate Water
the Lawn and
Lydiard Park
as pleasure
grounds &c.

79.—(1) The Corporation may temporarily and from time to time allow the use of any part or parts of the said lands for the purposes of a public walk pleasure ground public park or recreation ground for such period or periods as they may think fit.

(2) During such period or periods the said part or parts of the lands so used shall be deemed to be public walks or pleasure grounds within the meaning of the Public Health Acts which shall apply thereto as if such parts had been acquired by the Corporation in pursuance of section 164 (Urban authority may provide places of public recreation) of the Public Health Act 1875.

(3) At the expiration of such period or periods the Corporation shall have and may exercise over and in respect of the said part or parts of the lands so used the same powers as they had and might exercise prior to such user.

(4) Provided that during such period or periods the Corporation shall exhibit and keep exhibited at each gate or entrance to the said part or parts of the lands so used a notice specifying the period during which the same is or are to be used for the purposes of a public walk pleasure ground public park or recreation ground and a printed copy of the byelaws made by the Corporation under section 164 of the Public Health Act 1875.

80. No power conferred upon the Corporation by the following sections of this Act (namely):—

Saving for trusts covenants &c. in conveyances and leases.

- Section 74 (Power to provide concert halls &c.);
- Section 75 (Power to provide &c. entertainments &c.);
- Section 78 (Power of development of lands at Coate Water the Lawn and Lydiard Park); and
- Section 79 (Temporary use of lands at Coate Water, the Lawn and Lydiard Park as pleasure grounds &c.);

shall be exercised in such a manner as to be at variance with any trust subject to which any lands or buildings are held managed or controlled by the Corporation without an order of the High Court or of the Charity Commissioners or the Minister of Education or (where the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of such donor or other person.

81. It shall be lawful for the Corporation—

Provision of lectures.

- (a) to provide suitable lecture rooms and to cause lectures to be given on such subjects as the Corporation think fit and to let such rooms and to make reasonable charges for admission to such lectures; and
- (b) to provide suitable rooms for art exhibitions and to permit art exhibitions in such rooms and to let such rooms and to make reasonable charges for admission to such exhibitions:

Provided that the sum to be expended by the Corporation in any one year on the provision of lectures shall not exceed the amount (calculated in accordance with the rules made from time to time by the Minister under sections 9 (Provisions as to precepts) and 58 (Power to make rules) of the Rating and Valuation Act 1925) which would be produced by a rate of one-third of a penny in the pound in addition to any moneys received by the Corporation under the provisions of this section.

82. The Corporation may establish and maintain or may subscribe towards the establishment and maintenance of an information bureau or information bureaux in the borough

Power to establish information bureaux.

PART VI.
—cont.

for the purpose of supplying information with regard to the borough and neighbourhood and may employ and pay such number of clerks assistants and servants as they may think fit for the purpose and may if they think fit make charges for the use of such bureau or bureaux or for information supplied by means thereof.

Power to publish bulletins &c.

83. In connection with their powers under section 81 (Provision of lectures) and section 82 (Power to establish information bureaux) of this Act and under the Public Libraries Acts 1892 to 1919 the Corporation may publish and sell or dispose of bulletins journals and leaflets and documents of historical or literary interest having a local connection.

Notice of processions to be given.

84.—(1) Any person intending to organise or form a public or ceremonial procession or a circus procession or procession of wild animals through the streets of the borough (other than a public or ceremonial procession which is regularly held through such streets) shall give written notice thereof and of the route proposed to be taken and of the time at which it will take place to the Corporation and to the chief constable of the county by leaving such notice at the office of the town clerk and at the police headquarters in the borough respectively thirty-six hours at least (exclusive of Sundays) previous to the time fixed for such procession to pass through the streets.

(2) If any such procession passes through the streets of the borough without such notice having been previously given or otherwise than in accordance with such notice any person organising or conducting such procession shall be liable to a penalty not exceeding five pounds.

As to barriers in streets.

85.—(1) It shall be lawful for the Corporation at all times of ceremonies public processions rejoicings fairs exhibitions carnivals races sports illuminations or on emergencies to cause barricades to be erected across any of the streets of the borough and to continue the same for such time as may be deemed reasonably necessary and any person who wilfully removes any such barricade or any part thereof shall be liable to a penalty not exceeding forty shillings.

(2) For the purpose of the erection of such barricades the Corporation may construct or place and maintain in and under the surface of the streets of the borough such sockets or slots as may in their opinion be necessary or convenient.

(3) The Corporation shall not exercise the powers of this section in such manner as to cause obstruction to the access to or egress from any station or depot of a railway company except with the consent of such company but such consent

shall not be unreasonably withheld and any question as to whether in any case the consent is unreasonably withheld shall be referred to arbitration.

PART VI.
—cont:

86.—(1) The Corporation may procure officers appointed by them for securing the observance of the provisions of this Act and of all other Acts relating to parks and pleasure grounds and of the byelaws and regulations made thereunder and approved by the chief constable of the county to be sworn in as constables for that purpose and the chief constable shall issue a warrant card to each officer so sworn in but any such officer shall not act as a constable unless in uniform or producing (if so required) his warrant card. Officers may be sworn in as constables.

(2) Nothing in this section shall be deemed to render applicable to any such officer the provisions of the Police Pensions Act 1921 or any other enactments relating to pensions gratuities and allowances in respect of police service. 11 & 12 Geo. 5.
c. 31.

87.—(1) The Corporation may maintain in perpetuity or for such period as they may determine a grave or grave space or monument in any burial ground or cemetery provided or maintained by them and may accept a sum of money from any person in consideration of such maintenance. Maintenance of graves in burial grounds.

(2) The Corporation may apply for the purposes of this section any sum of money received by them before the passing of this Act in consideration of such maintenance.

(3) The Corporation may if they think fit invest in statutory securities the whole or any part of any such sum as is referred to in subsection (1) or subsection (2) of this section and apply the interest thereon in maintaining the grave or grave space or monument in such manner as the Corporation shall think fit.

(4) Any such sum and the interest thereon shall be shown separately in the accounts of the Corporation relating to their cemetery or burial ground.

PART VII.

GENERAL.

88. The sections of the Act of 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto (that is to say):— Application of provisions of Act of 1936.

Section 271 (Interpretation of “provide”);

Section 275 (Power of local authority to execute certain work on behalf of owners or occupiers);

Section 276 (Power of local authority to sell certain materials);

Section 277 (Power of councils to require information as to ownership of premises);

PART VII.
—cont.

- Section 283 (Notices to be in writing; forms of notices &c.);
- Section 284 (Authentication of documents);
- Section 285 (Service of notices &c.);
- Section 286 (Proof of resolutions &c.);
- Section 287 (Power to enter premises);
- Section 288 (Penalty for obstructing execution of Act);
- Section 289 (Power to require occupier to permit works to be executed by owner);
- Section 291 (Certain expenses recoverable from owners to be a charge on the premises: power to order payment by instalments);
- Section 292 (Power to make a charge in respect of establishment expenses);
- Section 293 (Recovery of expenses &c.);
- Section 294 (Limitation of liability of certain owners);
- Section 295 (Power of local authority to grant charging orders);
- Section 296 (Summary proceedings for offences);
- Section 297 (Continuing offences and penalties);
- Section 299 (Inclusion of several sums in one complaint &c.);
- Section 304 (Judges and justices not to be disqualified by liability to rates);
- Section 328 (Powers of Act to be cumulative);
- Section 329 (Saving for certain provisions of the Land Charges Act 1925):

Provided that the said sections 277 287 288 289 291 292 294 295 and 329 shall only apply to the provisions contained in Part III (Streets buildings and sewers) and Part IV (Infectious diseases and sanitary matters) of this Act.

As to byelaws. 89. As respects byelaws made under this Act the confirming authority for the purposes of section 250 (Procedure &c. for making byelaws) of the Act of 1933 shall be—

(a) in the case of byelaws made under the following sections of this Act (namely):—

Section 75 (Power to provide &c. entertainments &c.); and

Section 78 (Powers of development of lands at Coate Water the Lawn and Lydiard Park);

the Secretary of State; and

(b) in all other cases the Minister.

90.—(1) Any person aggrieved by any requirement refusal or other decision of the Corporation or of any officer thereof under Part III (Streets buildings and sewers) or Part IV (Infectious diseases and sanitary matters) of this Act may except where otherwise expressly provided or when some other right of appeal is conferred by this Act appeal to a court of summary jurisdiction. As to appeals.

(2) The procedure upon any such appeal shall be by way of complaint for an order and the Summary Jurisdiction Acts shall apply to the proceedings.

(3) The time within which any such appeal may be brought shall except where otherwise expressly provided be twenty-one days from the date on which notice of the requirement refusal or decision was published or served upon the person desiring to appeal and for the purposes of this subsection the making of the complaint shall be deemed to be the bringing of the appeal.

(4) In any case in which such an appeal lies the document notifying the requirement refusal or decision in the matter shall state the right of appeal to a court of summary jurisdiction and the time within which such an appeal may be brought unless these have already been stated in a notice to the person concerned informing him of his right to a hearing before the Corporation with regard to the same matter.

(5) Where a person aggrieved by any order determination or other decision of a court of summary jurisdiction under this Act is not by any other enactment authorised to appeal to a court of quarter sessions he may except where otherwise expressly provided appeal to such a court.

(6) Where any requirement refusal order determination or other decision against which a right of appeal is conferred by this Act involves the execution of any work or the taking of any action or makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of such requirement refusal order determination or other decision or to use any premises for any purpose for which they were lawfully used up to such time—

- (a) no proceedings in respect of any failure to execute the work or take the action shall be taken;
- (b) the Corporation shall not execute such work or take such action; and
- (c) subject to the proviso to subsection (2) of section 30 (Restriction on erection of stands &c.) of this Act any such person may carry on such business and use such premises for such purpose;

PART VII.
—cont.

until the time for appealing has expired or when an appeal is lodged until the appeal has been disposed of or withdrawn or fails for non-prosecution thereof.

(7) Where upon an appeal under this Act a court varies or reverses any requirement refusal or other decision of the Corporation effect shall be given to the order of the court and in particular any necessary consent certificate or other document shall be granted or issued and any necessary entry in any register shall be made.

Restriction on
right to
prosecute.

91. Section 298 (Restriction on right to prosecute) of the Act of 1936 shall apply to offences created by or under Part III (Streets buildings and sewers) and Part IV (Infectious diseases and sanitary matters) of this Act or by or under the following sections of this Act (namely):—

Section 75 (Power to provide &c. entertainments &c.);

Section 78 (Powers of development of lands at Coate Water the Lawn and Lydiard Park);

Section 84 (Notice of processions to be given); and

Section 85 (As to barriers in streets);

as if they were offences created by or under that Act.

Damages and
charges to be
settled by
court.

92. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted.

Application of
Arbitration
Acts.

93. Where under this Act any question or dispute is to be referred to an arbitrator or to arbitration other than questions or disputes to which the provisions of the Lands Clauses Acts apply then unless other provision is made the reference shall be to a single arbitrator to be agreed upon between the parties to the question or dispute or in default of such agreement appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such arbitration.

Compensation
how to be
determined.

94. When any compensation costs damages or expenses is or are by this Act or by any local Act or Order for the time being in force in the borough directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by subsection (2) of section 278 (Compensation to individuals for damage resulting from exercise of powers under Act) of the Act of 1936.

95. Where under the provisions of this Act or any local Act in force in the borough the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

Apportion-
ment of
expenses in
case of joint
owners.

96. Where under this Act or under any enactment the Corporation give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the works or the doing of the act or thing without the required consent.

Breach of
conditions of
consent of
Corporation.

97. Whenever the Corporation the surveyor or the sanitary inspector under an enactment execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Corporation shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Corporation or the surveyor or the sanitary inspector or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses payable by the Corporation in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

In executing
works for
owner Cor-
poration liable
for negligence
only.

98.—(1) Every undertaking or agreement under seal expressed to be made in pursuance of this section and given by or to the Corporation to or by the owner of any legal estate in land or property on the passing of plans or otherwise in connection with such land or property shall be binding upon such owner and his successors in title and all persons claiming through or under him or them and upon the Corporation and such owner shall be entitled to require from the Corporation a copy of such undertaking or agreement.

Undertakings
to bind
successive
owners.

(2) Any such undertaking or agreement of such owner shall be treated as a local land charge for the purposes of the Land Charges Act 1925.

PART VII.
—cont.

(3) Any such undertaking or agreement of such owner shall not be binding upon any person in whom any other legal estate in such land or property is vested at the date thereof nor upon his successors in title unless such person joins in such undertaking or agreement.

Application of
section 265
of Public
Health Act
1875.

99. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of this Act or any local enactment for the time being in force in the borough as if the same were re-enacted therein.

Inquiries by
Minister.

100. The Minister may hold such inquiries as he considers necessary in regard to the exercise of any powers conferred upon him or the giving of consents under this Act and section 290 (Power of government departments to direct enquiries) of the Act of 1933 shall apply accordingly.

Commence-
ment of
certain pro-
visions of this
Act.

101.—(1) The provisions of this Act to which this section applies shall come into operation on but not until such date as may be fixed by a resolution of the council of which date public notice shall be given by the Corporation by advertisement in one or more local newspapers circulating in the borough. Every such advertisement shall also state the effect of the provisions to which it relates and the date specified therein as the date on which such provisions shall come into operation shall not be less than one month after the date of publication of the advertisement:

Provided that if the provision is one which requires the registration of any person or premises the application for the registration may be made and determined before the provision comes into operation.

(2) A copy of a newspaper containing such advertisement shall be sufficient evidence of the publication of the advertisement.

(3) This section shall apply to the following sections of this Act (namely):—

Section 41 (Parents &c. to notify certain diseases);

Section 42 (Restrictions on attendance at schools and places of assembly);

Section 47 (Registration of hawkers of food and premises);

Section 49 (Notice of slaughter of animal unfit for food);

Section 50 (Animals slaughtered outside slaughter-houses).

(4) As respects any of the said provisions which requires the registration of persons carrying on any business or of

premises used for any purpose it shall be lawful for any person who when such provision comes into operation—

PART VII.
—cont.

- (a) was carrying on any such business or using any premises for any such purpose; and
- (b) has made application in accordance with the provisions of this Act for such registration as is required by this Act;

to continue to carry on such business and to use such premises for such purpose until such time as he has been informed of the decision with regard to his application and if the decision is adverse during such further time as is provided under subsection (6) of section 90 (As to appeals) of this Act.

102. Nothing in this Act affects prejudicially any estate Crown rights. right power privilege or exemption of the Crown.

103.—(1) The provisions of the Town and Country Planning Acts and of any order scheme or regulation made under those Acts or under any enactment repealed by those Acts so far as those provisions are from time to time in force in respect of the land on which any development within the meaning of those Acts is carried out under this Act shall apply to that development.

(2) In this section the expression "Town and Country Planning Acts" means—

- (a) the Town and Country Planning Acts 1932 and 1943 the Town and Country Planning Act 1944 and the New Towns Act 1946; and
- (b) any public general Act passed or to be passed in the present session repealing amending or extending the provisions of those Acts.

22 & 23 Geo. 5.
c. 48.
6 & 7 Geo. 6.
c. 29.
7 & 8 Geo. 6.
c. 47.
9 & 10 Geo. 6.
c. 67.

104. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation.

Costs of Act.

The SCHEDULE referred to in the foregoing Act.

THE SCHEDULE.

PROVISIONS AS TO SWINDON CORPORATION BONDS.

1. Bonds shall be issued in such amounts in denominations of five pounds and multiples of five pounds and for such periods not being less than seven years as the Corporation may determine.
2. (a) Bonds may be issued at such price and at such rates of interest as the Corporation may from time to time determine Provided that bonds shall not be issued at a price lower than par except with the consent of the Minister.
(b) The nominal amount of bonds issued shall not exceed in the aggregate according to the price of issue such amounts as will together produce the actual amount of money for the time being authorised to be borrowed by the Corporation.
(c) Where a bond has been issued at a price lower than par so much of the issue as represents the difference between the price of the bond as issued and its nominal value shall be treated as a loan authorised by a statutory borrowing power and repayable out of the revenues of the Corporation on or before the date for repayment specified in the certificate issued in respect of the bond.
3. Bonds shall be repayable at par (unless the same shall have been previously cancelled by purchase in the open market or by agreement with the bondholder) at the office of the treasurer on the dates specified in the certificates issued in respect of the bonds and no interest shall be payable thereon in respect of any period after the date upon which the bond is repayable.
- 4.—(1) The treasurer shall keep a register of all persons who are holders for the time being of bonds.
(2) The register shall contain the following particulars:—
 - (a) The name address and description of each holder a statement of the denomination of the bonds held by him the price at which and the periods for which they are issued and the numbers and dates of the certificates issued to him as hereinafter provided;
 - (b) The date of registration of each holder and the date on which he ceased to be so registered.
- (3) The register shall be prima facie evidence of any matter entered therein in accordance with the provisions of this Act and of the title of the persons entered therein as holders of bonds.
- 5.—(1) The Corporation shall issue to each holder of a bond a certificate in respect thereof duly numbered and dated and specifying the denomination of the bond and the period for which it is issued.
(2) If a certificate is worn out or damaged the Corporation on the production thereof may cancel it and issue a new certificate in lieu thereof.

- (3) If a certificate is lost or destroyed the Corporation on proof thereof to their satisfaction and if they so require on receiving an indemnity against any claims in respect thereof may give a new certificate in lieu of the certificate lost or destroyed.
- (4) An entry of the issue of a substituted certificate shall be made in the register.
- (5) A certificate shall be in the following form or in a form substantially to the like effect:—

No.....

BOROUGH OF SWINDON
SWINDON CORPORATION BONDS

.....per centum Swindon Corporation bond repayable at par on the.....19.....at the.....

This is to certify that.....
of.....
is the registered holder of a bond for.....
pounds issued by the corporation of Swindon under the Swindon Corporation Act 1947 at.....

The common seal of the mayor
aldermen and burgesses of
the borough of Swindon was
hereunto affixed in the
presence of

.....Mayor.
.....Town clerk.

Date.....

- 6. The certificate shall be prima facie evidence of the title of the person therein named his executors administrators or assigns to the bond therein specified but the want of a certificate if accounted for to the satisfaction of the Corporation shall not prevent the holder of the bond from disposing of and transferring the bond.
- 7.—(1) The transfer of a bond shall be by deed in the following form or in a form substantially to the like effect:—

FORM OF DEED OF TRANSFER
SWINDON CORPORATION BOND(S)

I
in consideration of the sum of.....
paid by.....(hereinafter called
"the transferee") do hereby assign and transfer to the
transferee.....to hold unto
the transferee his executors administrators and assigns subject
to the several conditions on which I held the same immedi-
ately before the execution hereof and I the transferee do
hereby agree to accept and take the said.....
subject to the conditions aforesaid.

As witness our hands and seals this.....day of.....

(2) A bond may be transferred in whole or in part so however that any part transferred shall not be for an amount other than an amount for which a bond may be issued by the Corporation.

(3) The deed of transfer shall be delivered to and retained by the Corporation and the Corporation shall enter a note thereof in a book to be called the "Register of transfers of Swindon Corporation bonds" (hereinafter called "the register") and shall endorse on the deed of transfer a notice of that entry.

(4) The Corporation shall upon receipt of the deed of transfer duly executed and properly stamped together with the certificate issued in respect of the bond enter the name of the transferee in the register and shall issue a new certificate or certificates to the transferee or to the transferor and transferee as the case may require.

(5) Until the deed of transfer and the certificate have been delivered to the Corporation as aforesaid the Corporation shall not be affected by the transfer and the transferee shall not be entitled to receive any payment of interest on the bond.

(6) The Corporation before registering a transfer of a bond may if they think fit require evidence by statutory declaration or otherwise of the title of any person claiming to make the transfer.

8. The Corporation may close the register for a period not exceeding thirty days immediately before the thirty-first day of March and the thirtieth day of September respectively in any year and notwithstanding the receipt by the Corporation during those periods of any deed of transfer the half-yearly payment of interest next falling due may be made to the persons registered as holders of bonds on the date of the closing of the register.

9.—(1) Any person becoming entitled to a bond by reason of the death or bankruptcy of a holder or by any lawful means other than a transfer may by the production of such evidence of title as the Corporation may require either be registered as holder of the bond or instead of being himself registered may make such transfer of the bond as the holder could have made and the Corporation shall issue a certificate accordingly.

(2) Until such evidence as aforesaid has been furnished to the Corporation the Corporation shall not be affected by the transmission of the bond and no person claiming by virtue thereof shall be entitled to receive any payment of interest thereon.

(3) Where two or more persons are registered as holders of a bond they shall be deemed to be joint holders with right of survivorship between them.

10.—(1) Unless the holder of a bond otherwise requests the Corporation may pay the interest thereon by posting a warrant to the holder at his address as shown in the register.

(2) The posting by the Corporation of a letter containing an interest warrant addressed to a holder as aforesaid shall as respects the liability of the Corporation be equivalent to the delivery of the warrant to the holder himself.

11. The Corporation before paying any interest on any bonds may if they think fit require evidence by statutory declaration or otherwise of the title of any person claiming a right to receive the interest.

12. The production to the Corporation of any document which is by law sufficient evidence of probate of the will or letters of administration of the estate or confirmation as executor of a deceased person having been granted to some person shall notwithstanding anything in this schedule be accepted by the Corporation as sufficient evidence of the grant.

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Controller of His Majesty's Stationery Office and King's Printer of Acts
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